



Goods and/or Services Agreement

between

**Commonwealth Scientific and Industrial
Research Organisation**

and

insert Supplier Name

For supply of Grounds Maintenance Services at CSIRO
Victorian Sites

Agreement Details

Item	Description	Details
1.	CSIRO details	Legal entity name: Commonwealth Scientific and Industrial Research Organisation ABN: 41 687 119 230 Postal address: CSIRO Black Mountain Science and Innovation Park, GPO Box 1700 Canberra ACT 2601 Australia
2.	CSIRO Contract Administrator	Name: insert details Position: insert details Phone: insert details Email: insert details
3.	Supplier details	Name: insert details ACN: insert details, if applicable ABN: insert details Physical address: insert details Postal address: insert details
4.	Supplier Contract Manager	Name: insert details Position: insert details Phone: insert details Email: insert details
5.	Commencement Date	Insert the Commencement Date in the format DD Month YYYY,
6.	End Date	Insert the End Date in the format DD Month YYYY.
7.	Option Period(s) (if any)	Two Option Periods of one year each
8.	Total Contract Price	AUD\$[Insert amount made up of the applicable Charges, Fees and Expenses] (GST inclusive).
9.	Insurance Requirements	Public liability Amount: \$20,000,000 for any one claim and \$20,000,000 in the annual aggregate. Period: This insurance must be maintained from the Commencement Date until expiry or termination of this Agreement (unless it is a claims-made policy, in which case it must be maintained from the Commencement Date until seven years after the expiry or termination of

Item	Description	Details
		this Agreement). Professional indemnity <u>Amount:</u> \$<u>10,000,000</u> for any one claim and \$<u>10,000,000</u> in the annual aggregate. <u>Period:</u> This insurance must be maintained from the Commencement Date until seven years after the expiry or termination of this Agreement. Product liability <u>Amount:</u> \$<u>10,000,000</u> for any one claim and in the annual aggregate. <u>Period:</u> This insurance must be maintained from the Commencement Date until seven years after the expiry or termination of this Agreement. Workers' compensation <u>Amount:</u> As required by Law. <u>Period:</u> This insurance must be maintained from the Commencement Date until the expiry or termination of this Agreement.
10.	Applicable Policies and Applicable Standards	The Contractor must, at its own cost, obtain and maintain all licenses, registrations, accreditations, and certifications required by law or specified in this Agreement, Schedule 1.10 Standards and Certifications to perform the Services.

Executed as an agreement

SIGNED for and on behalf of the
**COMMONWEALTH SCIENTIFIC AND
INDUSTRIAL RESEARCH ORGANISATION** by a
duly authorised representative

Name of authorised representative (print)

Title of authorised representative (print)

Signature of authorised representative

Date

Option A – execution under s127 (very common, preferred) – use when supplier is a registered Australian company and agreement to be signed by either two directors or director and secretary or sole director.

SIGNED by [Insert name of Supplier and ABN]

in accordance with section 127(1) of the
Corporations Act 2001 (Cth)

Name of Director (print)

Name of Director / Company Secretary*
(print)

Signature of Director

Signature of Director / Company Secretary*

Date

Date

**Delete as applicable*

Option B – execution under s126 - use when supplier is an Australian registered company and unable to sign under s127 (for example, directors are unavailable or it's a large corporation) – agreement to be signed by person authorised by the Supplier to enter into the agreement

SIGNED by [Insert name of Supplier and ABN]

by its authorised officer in accordance with
section 126 of the *Corporations Act 2001* (Cth)

in the presence of:

Name and title of authorised officer (print)

Name of witness
(print)

Signature of authorised officer

Signature of witness

Date

Date

Schedule 1. Statement of Requirement

1. Purpose

- 1.1 Through this contract, CSIRO requires qualified and experienced supplier to provide grounds maintenance services at its Clayton Precinct (Clayton, Clayton North and Notting Hill), Aspendale, and Werribee (Sneydes Road and South Road).
- 1.2 The Contractor shall provide comprehensive preventive and reactive grounds maintenance and landscaping services to ensure all outdoor areas at the mentioned sites are maintained to a high standard of safety and presentation.
- 1.3 CSIRO operates an extensive portfolio of buildings and facilities across Australia. Through this Contact, the Supplier is required to provide Ground Maintenance Services for the Site locations outlined in Table 1 CSIRO Regions and Site locations to ensure CSIRO maintains its obligations under the relevant statutes and regulations and provides a safe working environment for all staff.

2. Goods and/or Service Requirements

- 2.1 The Contractor is required to deliver Grounds Maintenance Services at the sites detailed in Table 1 CSIRO Regions and Site locations:

Table 1 CSIRO Regions and Site locations			
Region	CSIRO Site Name	Site No.	Site Address
Victoria	Clayton	6040	Research Way, Clayton VIC 3168
	Clayton North	6300	71 Normanby Road, Clayton VIC 3168
	Clayton, Notting Hill	6280	5 - 7 Commercial Drive, Notting Hill VIC 3168
	Aspendale	6020	107 - 121 Station Street, Aspendale VIC 3195
	Werribee Sneydes Road)	6320	671 Sneydes Road, Werribee VIC 3030
	Werribee South Road	6310	6 South Road, Werribee VIC 3030

- 2.2 The Contractor is required to undertake:
 - (a) Grounds Maintenance services to ensure CSIRO sites are maintained in an acceptable general appearance, are safe to access, and that the supplier is competent and has the required capability to service our sites.
 - (b) Ensure reception entries are priority areas and are to be kept to CSIRO standards.
 - (c) Services whereby the maximum time between site visits is two weeks, to ensure litter and weed control is at an acceptable level.

2.3 The Contractor is to undertake Services within the working hours below:

- (a) Clayton Precinct, Werribee Sneydes & Aspendale:
 - (i) Monday to Friday, 7:30am to 6:00pm (except for public holidays)
- (b) Werribee South Road:
 - (i) Ad-hoc basis only Monday to Friday advised by CSIRO Facility Manager

2.4 In undertaking the services, the Contractor is to comply with local council, State Government and Commonwealth laws, regulations and safety codes, including but not limited to, Workplace Health and Safety, noise restrictions and work hour restrictions.

3. Grounds Services

3.1 Lawn Maintenance

- (a) Mowing – Mow all lawn areas evenly to a height between 30-50mm
- (b) Edging - Lawns trimmed to form a defined edge using a mechanical edger along pathways, kerbing, gutters, and around buildings, posts and garden beds and fences. No chemicals to be used as an edging alternative unless approved in writing by the CSIRO Facilities Contact;
- (c) Mowing/edging clean-up – Grass clippings must not be allowed to build up on lawn areas. Sweep all grass clippings from adjacent roads, paths, hard surfaces immediately after mowing and edging. All green waste to be removed off site to a registered recycling facility;
- (d) Litter pick – Pick up litter and general waste (e.g. paper, bottles, plastic, cans, etc.) from all lawn areas. Sort and place in recycling and waste bins provided by CSIRO on site;
- (e) Leaf fall – Remove leaves from all lawn areas and recycle at a registered facility off site;
- (f) Weed control – Broadleaf weed spray all lawn areas, as needed at least twice per year, when requested by the CSIRO Facilities Contact. Herbicides must comply with Australian Standards and be approved, in writing, by the CSIRO Facilities Contact. A record of chemical application will need to be kept and presented to the CSIRO Facilities Contact as part of all spraying events onsite.

3.2 Garden Maintenance

- (a) Litter pick – Pick up litter and general waste (e.g. paper, bottles, plastic, cans and loose debris) from all garden areas. Sort and place in recycling bins provided by CSIRO on site
- (b) Garden clean-up – remove leaves, bark, twigs, branches, spent flower heads, dead/diseased plants and debris from garden beds and recycle at a registered facility off site
- (c) Pruning – trim plants, hedges and shrubs to maintain a compact form, free from wayward growth, whilst still maintaining a healthy and tidy appearance. Ensure a 200mm gap is maintained between plants and the surface of any structure. Ensure that shrubs and plants do not encroach onto pathways, roads or courtyard areas. Ensure that signage, lighting and garden features are not obstructed by plant growth. Trees to be kept clean trunked for a clear line of sight and tidy presentation. Recycle all green waste off site to a registered recycle facility.
- (d) Pest control – Inspect plants in garden areas for pests and treat with pesticides. Pesticides must comply with Australian Standards and be approved for use, in writing, by the CSIRO Facilities Contact. A record of chemical application will need to be kept and presented to the CSIRO Facilities Contact as part of all spraying events onsite

- (e) Weed control – remove all weeds from garden beds. Weeds below 300mm in height to be hand removed or sprayed out using an approved herbicide, above 300mm weeds must be removed by hand. Recycle all green waste off site to a registered recycle facility. Herbicides to comply with Australian Standards and be approved for use, in writing, by the CSIRO Facilities Contact. A record of chemical application will need to be kept and presented to the CSIRO Facilities Contact as part of all spraying events onsite.

3.3 Paths, Courtyards and Hard Stand

- (a) Litter pick – Pick up litter and general waste (e.g. paper, bottles, cans, etc.) from all paths, gravel/pebble areas, courtyards and hardstand areas. Sort and place in recycling bins provided by CSIRO on site
- (b) Cleaning – vacuum, sweep or blow all footpaths, gravel paths, gravel/pebble areas paved areas, courtyards, and hardstands to remove all leaves and debris. Leaves and debris to be collected and recycled off site, not blown onto nearby lawns or garden beds
- (c) Weed control – remove weeds by hand or with an approved herbicide. Chemical dyes must not be used in these areas. Recycle all green waste off site to a registered recycle facility. Herbicides to comply with Australian Standards and be approved for use, in writing, by the CSIRO Facilities Contact. A record of chemical application will need to be kept and presented to the CSIRO Facilities Contact as part of all spraying events onsite.
- (d) Areas where blowers must not be used adjacent to CSIRO buildings will be advised on commencement
- (e) Monitor and advise CSIRO Facilities contact of hazards such as moss/slippery pathways that could create a slip hazards to pedestrians

3.4 Roadways and Carparks

- (a) Litter pick – Pick up litter and general waste (e.g. paper, bottles, cans, etc.) from all Roadways and Carparks areas. Sort and place in recycling bins provided by CSIRO on site
- (b) Cleaning – vacuum sweep or blow all roads and carparks to remove all leaves, plant debris, soil and silt. Leaves and debris to be collected and recycled off site, not blown onto nearby lawns and gardens. Blowing shall not occur where vehicles are parked and damage may occur.
- (c) Weed control – remove weeds by hand or with an approved herbicide (approved in writing by the CSIRO Facilities Contact. Chemical dyes must not be used in these areas. Recycle all green waste off site to a registered recycle facility. Herbicides to comply with Australian Standards and be approved for use, in writing, by the CSIRO Facilities Contact. A record of chemical application will need to be kept and presented to the CSIRO Facilities Contact as part of all spraying events onsite.
- (d) Storm water drainage - Check road sumps, grate drains, spoon drains, kerb and gutter areas. Remove any leaves, debris and soil if its reasonably practicable. Report any areas requiring plumbers attention to the CSIRO Facilities Contact.

3.5 HS&E Hazard Management

- (a) Survey the site for HSE hazards (e.g. suspended broken tree branches, dying unstable trees, unsafe walkways, missing drain covers, overflowing drains, chemical/fuel spills)
- (b) Ensure area is safe and if possible rectify any hazard immediately (e.g. removal of tree branches) or otherwise make temporary arrangements (e.g. erect a barricade). Keep a stock of barricade material (e.g. barrier tapes, witches hats, posts) readily available for this purpose.

- (c) Notify the CSIRO Facilities contact of relevant observations, actions and safety recommendations immediately via email by COB next business day.
- (d) Dispose of all tree material including trunks and large limbs as directed by the CSIRO Facilities contact
- (e) Survey Tree Health and Safety – All trees on site to be surveyed and identified in a written schedule of trees that has a reference number per tree, location details, both textually and graphically presented, once yearly, by a qualified arborist or tree surgeon for clearance to building structures, power lines, paths and roads. Inspect for damage, dead branches and disease and provide a written report to the CSIRO Facilities Contact with recommendations and pricing. Additional requirements may be required on a site-by-site basis, additional requirements will be advised by the Facilities Contact.
- (f) The contractor must review site and locale fuel load and manage to minimise risk of fire damage. All noted issues to be advised to CSIRO Facilities contact.

4. Seasonal Preparedness

- 4.1 The Contractor is required to undertake Seasonal Site Preparedness Audits as described in Item 4.4 and 4.5. The Contractor is to take a strategic and proactive approach to Seasonal Preparedness at each Site, providing timely and effective communications to the CSIRO Contract Manager or Facilities Coordinator on risks to be addressed and any preparation works required, including quotes where services fall within the scope of services of this Contract. Failure to undertake this essential task may be considered as a serious default on the part of the Contractor.
- 4.2 The Contractor must provide the Services to ensure the existing fuel load in garden beds is continually decreased and an effective solution is implemented to eliminate the fire hazard of leaves blown into garden beds.
- 4.3 As part of the annual performance review of the Contract, the Contractor shall report on their demonstrated effectiveness in delivering Services to achieve the fire hazard reduction requirement in Item 4.2.
- 4.4 Site Preparedness (Fire) Audits are required and at a minimum must follow the requirements below:
 - (a) Inspect site throughout and provide a written fire audit to the CSIRO Contract Manager or Facilities Coordinator prior to the start of the fire season
 - (b) Rectify identified issues from Fire Report if requested by the CSIRO Contract Manager or Facilities Coordinator
- 4.5 Site Preparedness (Storm) Audits are required and at a minimum must follow the requirements below:
 - (a) Inspect site throughout and provide a written fire audit to the CSIRO Contract Manager or Facilities Coordinator prior to the start of the storm season
 - (b) Rectify identified issues from Storm Report if requested by the CSIRO Contract Manager or Facilities Coordinator
- 4.6 Where applicable Site Preparedness (Bushfire) Audits are required and at a minimum must follow the requirements below and as provided in the Checklist which will be confirmed by the CSIRO Contract Manager or Facilities Coordinator.
- 4.7 Where applicable Site Preparedness (Floods) Audits are required and at a minimum must follow the requirements below and as provided in the Checklist which will be confirmed by the CSIRO Contract Manager or Facilities Coordinator.

5. Incident Response Periodic and Reactive Services

5.1 The services identified in this Item 5 will be required either periodically or when advised by the CSIRO Facilities Manager. The Services are subject to the Contracted Schedule of Rates for each of these services as provided in Annexure A - Pricing Response and Service Frequency:

- (a) Monday to Friday 7.30am to 5.00pm
- (b) Monday to Friday after hours 5.00pm to 7.30am
- (c) Saturdays
- (d) Sundays and Public Holidays
- (e) Call out fee (if any)

Incident Response

- 5.2 Storm/wind damage – remove fallen trees, branches and dangerous limbs as requested by the CSIRO Facilities Contact. Trees and or branches to be removed within 24hrs if they are a HSE risk or in a high traffic area. If not a HSE risk, implement safety measures (e.g. barriers, tape, cones) to ensure safety until corrective action completed.
- 5.3 Storm/miscellaneous damage – remove or make safe [e.g. washed out refuse (soil, tanbark)] to ensure safety within 24hrs if they are a HSE risk or in a high traffic area. If not a HSE risk, implement safety measures (e.g. barriers, tape, cones) to ensure safety until corrective action completed.

Hand watering

- 5.4 Hand water shrubs and plants under heat stress as directed by the CSIRO Facilities Contact.

Replanting

- 5.5 Ad hoc replacement of plants removed from garden areas. Supplier shall consult and recommend the appropriate replacement before replanting.

Mulching

- 5.6 Inspect and assess garden beds. Supply and install hardwood mulch to garden bed surroundings. Spread mulch to approximately 75mm thick and raked area to even level or as otherwise directed by the Facilities Contact

Tree Management

- 5.7 Trim branches and remove dead limbs, diseased /dead trees, highlighted in the tree survey report, as requested by the CSIRO Facilities Contact. Recycle all green waste and take offsite to a registered recycling facility, or as directed by CSIRO Facilities contact, mulch to be utilised on site
- 5.8 Remove fallen tree branches as a result of sickness or adverse weather conditions. Branches shall be mulched and redistributed to the site garden beds if it is reasonably practicable.
- 5.9 Pest control – treat diseased trees identified in the survey report with approved pesticides as requested by the Facilities Contact

Site Preparedness (Fire) Audits

- 5.10 Inspect site throughout and provide a written fire audit to the CSIRO Facilities Contact prior to the start of the summer fire season
- 5.11 Rectify identified issues from Fire Report if requested by the CSIRO Facilities Contact

Slashing

- 5.12 Undertake slashing to areas nominated by the CSIRO Facilities Contact to a height not greater than 150mm

6. Equipment

- 6.1 The Contractor will maintain a methodology relating to equipment maintenance and replacement. Service records and maintenance schedules must be provided if requested by CSIRO.
- 6.2 Equipment used on site must be suitable for the Services being performed and incorporate innovative sustainable solutions. It is CSIRO's preference for contractors to use low-emission and electric equipment
- 6.3 No equipment, fuel or charging apparatuses are to be stored on site.

7. Staffing and Personnel

- 7.1 All contractor personnel and subcontractors must successfully complete the below requirements:
- (a) CSIRO Induction requirements
 - (b) Approved List of Personnel and Subcontractors including ABN's and emails
 - (c) Attendance Register
 - (d) Notify CSIRO of the removal of Contractor's Employees
 - (e) Management of authorised Personnel
- 7.2 CSIRO requires consistency in the Contractor's Personnel undertaking works onsite, high turnover of Personnel leads to Service disruption, increases risk and presents an administrative burden and therefore cost to CSIRO. CSIRO requires that the Contractor has in place an effective approach and program to both attract and retain qualified and experience personnel, and further has an effective plan for personnel contingency at all levels.
- 7.3 The Contractor shall ensure they have appropriately qualified and experienced personnel to undertake horticultural and garden maintenance. Proof of qualifications and experience must be provided if requested by CSIRO. The Contractor must provide a detailed description of their qualifications and/or experience in horticultural and garden maintenance.
- 7.4 For qualifications, Contractor should identify all qualification achieved and the institution/s where each was completed. Proof of qualifications and experience must be available if requested by CSIRO
- 7.5 All personnel working on Site must have a current police check which is obtained every 12 months. Reportable outcomes must be disclosed to CSIRO for review and decision with regard to suitability to work on Site. CSIRO retains the right to decline access to Site for personnel it deems as not suitable to perform Services on Site.
- 7.6 All personnel working on site will be required to wear a uniform which readily identifies them while they are on site. The Contractor company name or logo is to be displayed on the uniform.
- 7.7 The Contractor will maintain an effective service redundancy/contingency plan including their ability to manage staff absences, both planned and unforeseen (e.g. holidays and sick leave).
- 7.8 The Contractor is to avoid use of labour hire staff as a default part of their Contingency plan. Casual and labour hire staff are not exempt from personnel requirements in this Contract such as, but not limited to, experience, qualifications, inductions and police checks.

- 7.9 The Contractor is to maintain and report on a Staff turnover/retention and Contingency management KPIs on an annual basis which will form part of CSIRO's annual performance review of the Contract.
- 7.10 CSIRO would welcome apprentices as part of the proposed and ongoing on-Site team. The Contractor shall maintain a ratio of experienced and fully qualified staff to apprentices of no less than 2:1 to ensure an adequate supervision and training environment for apprentices and to reduce risk of incidents and incomplete services

8. Keys and Access Cards

- 8.1 Any access cards or keys issued by CSIRO to the Contractor's Personnel, the Contractor is required to be responsible for them; and maintain a register of all access card and keys issued, showing to whom and when they were issued, together with the receiving Personnel's signature confirming receipt.
- 8.2 Any access cards or keys issued to grounds maintenance Personnel must not be transferred to another person.

9. Prevention of Disturbance

- 9.1 When working near staff or near occupied parts or areas of the site or buildings, the Contractor is required to perform the services in a manner that does not disturb or adversely affect the occupants or their use of those parts or areas.
- 9.2 If works are being conducted that may create a disturbance, it is the requirement of the contractor and their personal to notify CSIRO facility manager in advance

10. Standards and Certifications

- 10.1 The Contractor will be required to comply with all relevant Australian legislation and standards applicable to the equipment and services which may include, but not be limited to:
- (a) Australian Electrical Standards
 - (b) Work Health and Safety (WHS) / OHS Act Compliance
 - (c) Safe Work Method Statements (SWMS)
 - (d) AS/NZS ISO 45001 (Occupational Health & Safety Management)
 - (e) Height Safety Standards (AS/NZS 1891)
 - (f) Public Safety & Traffic Management (AS 1742.3)
 - (g) Chemical Application & Biosecurity Regulations
 - (h) AS 4373 (Pruning of Amenity Trees)
- 10.2 The Contractor is required to provide all relevant certifications prior to commencement and upon request by CSIRO staff.
- 10.3 It is the responsibility of the contractor to provide competent and qualified personnel subject to the job to adhere to all Australian standards.

11. Performance

- 11.1 The following Key Performance Indicators (KPIs) have been identified and will apply, as a minimum to the Contractors performance:
- (a) performance against conditions of contract

- (b) provision of accurate reports within agreed timeframes
- (c) cost control within allocated budget
- (d) quality of service delivery and performance
- (e) ongoing evidence is to be provided to the CSIRO Facility Manager of necessary licences or permits (for staff and business operations) on commencement of the Services and within two weeks for any new or renewed licenses
- (f) ongoing evidence of the appropriate insurances.

11.2 The Contractor will is required to provide written reports on a monthly basis that cover at a minimum:

- (a) confirmation of regular services provided
- (b) details of all requests for additional services
- (c) performance against key performance indicators
- (d) details of all complaints received in the period, action taken to address those complaints and whether the complaint has been satisfactorily resolved

Performance Assessment

11.3 The Services performed under the Contract by the Preferred Supplier may be subject to a performance management framework consisting of:

- (a) regular meetings between the parties
- (b) issues resolution
- (c) quarterly performance reviews
- (d) formal Contract compliance auditing
- (e) annual performance reviews

11.4 CSIRO will take into consideration the results of the monthly performance reviews and any Contract compliance audits undertaken, in determining its options for any extensions to the Contract.

11.5 Service Level Agreements is to be supplied to CSIRO facility manger within 14 days of contract signatory.

12. Reporting

12.1 The Contractor will provide written reports via email in word or pdf format, on a quarterly basis that cover at a minimum of:

- (a) confirmation of regular services provided including hours per site
- (b) details of all requests for additional services
- (c) performance against key performance indicators
- (d) details of all complaints received in the period, action taken to address those complaints and whether the complaint has been satisfactorily resolved
- (e) a summary of incidents that have occurred on each Site in the reporting period
- (f) Fuel Consumption - A quarterly report provided to the Facilities Manager or Coordinator, detailing:
 - (i) Fuel Type

- (ii) Volume
 - (g) Chemical Usage - A quarterly report provided to the Facilities Manager or Coordinator, detailing:
 - (i) Chemical type
 - (ii) date applied
 - (iii) location of application
 - (iv) volume
- 12.2 The Contractor is required to provide written reports on an annual basis that cover at a minimum:
- (a) a review of service delivery performance against key performance indicators
 - (b) a review of contract compliance
 - (c) a review of the effectiveness of the service delivery plan
 - (d) other reports as required by CSIRO

13. Meetings

Contract Governance Meetings

- 13.1 A senior member of the Contractor's team, typically the Contract Manager, is required to attend annual Contract governance meetings with CSIRO Representatives to discuss all relevant matters relating to the strategic objectives of the Contract, higher level strategic or business-related matters, and the status and quality of the contractual relationship generally.
- 13.2 Each governance meeting will be chaired by CSIRO, and CSIRO will provide secretariat requirements of the meeting i.e. prepare meeting agendas and minutes
- 13.3 At CSIRO's discretion change the frequency of these meetings may change. This change must be in writing from CSIRO's Contracts and Compliance Manager
- 13.4 Regular agenda items for the 6 monthly meetings will include, but is not limited to, discussion on
- (a) characteristics of the contractual relationship
 - (b) review of the previous three (3) quarterly Contractor Performance review reports in accordance Clause 13.3, Performance Assessment
 - (c) serious or higher-level issues, which either party considers have not been satisfactorily resolved.
 - (d) the findings of any formal Contract Compliance Audit, undertaken in the previous three months in accordance with Section 10, Contracts Compliance Audit

Ad Hoc Meetings

- 13.5 The Contractor is required to attend various meetings convened by CSIRO from time to time, and here deemed appropriate in the context of the Contractor's responsibilities, represent CSIRO as its maintenance services provider; or in terms of any benefits to CSIRO drawn from the Contractor's knowledge of the facilities, or industry knowledge and facilities maintenance expertise generally.
- 13.6 Examples of ad-hoc meetings include but are not limited to meetings with:
- (a) Any CSIRO representatives relating to any incidental matters as they arise in connection with the Contract

- (b) any of CSIRO's stakeholders, other service providers, its consultants and agents etc
- (c) HSE and Emergency Planning Committees
- (d) project or works planning and management group meetings
- (e) meetings with other government agencies or representatives, including statutory and, or regulatory authorities etc

14. Service Delivery Plan

14.1 A Service Delivery Plan shall be developed by the Contractor and is subject approval by CSIRO. The Service Delivery Plan is to include at a minimum;

- (a) Maintenance Program
- (b) HSE Management Plan
- (c) Risk Management Plan
- (d) Service Levels
- (e) Meeting Schedule
- (f) Key Performance Indicators
- (g) Other inclusion as required by the CSIRO Contract Manager or Facilities Manager e.g.
 - (i) Quality Assurance Plan
 - (ii) Personnel names, qualifications, certifications, and contacts

14.2 The Service Delivery Plan will be monitored quarterly and reviewed at the annual performance review for effectiveness against the Contract requirements and the needs of CSIRO

15. Transition In/ Transition Out

15.1 The Contractor is to describe how they propose to transition-in from the current provider to CSIRO sites and set up the Service ready for operation on the commencement of this Contract.

15.2 Within 14 days from the Effective Date, the Contractor is required to provide to CSIRO, for approval by CSIRO (acting reasonably), a comprehensive Transition-in Plan (TiP).

15.3 The TiP is required to include an agenda of tasks and actions, including:

- (a) the tasks to be completed and approved by CSIRO
- (b) any critical path tasks and sub tasks included in the TiP
- (c) who will be responsible for completing the tasks; and
- (d) priorities, timeframes and anticipated task completion dates.

15.4 The Contractor may be required to attend weekly meetings with CSIRO during each Transition-in period to consult with CSIRO, discuss and resolve any issues as they arise, brief CSIRO on progress, and submit any material for approval.

15.5 The Contractor may be required to appropriately resource the transition-in effort to ensure that all tasks are completed in accordance with the approved TiP.

16. Sustainable Procurement

- 16.1 CSIRO has set targets to achieve net zero scope 1 and 2 emissions by 2030, net zero supply chain emissions (scope 3) by 2050, and to divert 80% or more of our waste from landfill by 2030. In addition, CSIRO aim to maximise water efficiency on sites and lower consumption.
- 16.2 The contractor is required to provide:
- (a) A copy of their Sustainability and/or Environmental policies, and the organisation's environmental targets.
 - (b) Outline initiatives that the supplier will implement at CSIRO sites to support CSIRO's sustainability goals and targets.
 - (c) Provide data or metrics relevant to energy, emissions or waste generated and water used relevant to this scope of works, where available.
- 16.3 The Contractor will submit its sustainability report to CSIRO annually which is to include the following;
- (a) Waste recovered through recycling and resource recovery processing in tonnes and as a percentage of total waste per annum.
 - (b) Water-saving performance against agreed benchmarks
 - (c) Energy-saving performance against agreed benchmarks

17. HSE Requirements

Specific Health Safety & Environment (HSE) Requirements

- 17.1 The contractor is required to Survey the site for HSE hazards (e.g. suspended broken tree branches, dying unstable trees, unsafe walkways, missing drain covers, overflowing drains, chemical/fuel spills).
- 17.2 Ensure area is safe and if possible, rectify any hazard immediately (e.g. removal of tree branches) or otherwise make temporary arrangements (e.g. erect a barricade). Keep a stock of barricade material (e.g. barrier tapes, witches' hats, posts) readily available for this purpose.
- 17.3 Notify the CSIRO Facilities Manager of relevant observations, actions, and safety recommendations immediately and in writing by COB next business day.
- 17.4 Risk Management Plan and appropriate JSEA/SWMS submitted to CSIRO Facilities Manager prior to commencing any work on site.
- 17.5 Dispose of all tree material including trunks and large limbs as directed by the CSIRO Facilities Manager.
- 17.6 Comply with local council, State Government and Commonwealth laws, regulations, and safety codes, including but not limited to, Workplace Health and Safety, noise restrictions and workhour restrictions.

General Health Safety & Environment Requirements

- 17.7 The Contractor must provide evidence of current licences, registration, or certification where licencing, registration or certification is required for the performance of the contracted work (for example Arborist/Tree Surgeon, Climber certification, Horticulturalist).
- 17.8 The Contractor is required to ensure that prior to the commencement of any Contract work, all persons employed or engaged by the Contractor (including sub-contractors) to perform work for CSIRO:

- 17.9 have completed CSIRO General Induction and Site-Specific Induction training within the previous two years
- 17.10 have provided CSIRO with evidence of a current licence for any work that requires a licence
- 17.11 undertake a security check if requested.
- 17.12 The Contractor must ensure that prior to the commencement of any Contract work:
- 17.13 a Job Safety and Environment Analysis (JSEA) is prepared and provided to CSIRO for all tasks being undertaken as part of the Contract work
- 17.14 a Safe Work Method Statements (SWMS) is prepared and provided to CSIRO for all high risk work being undertaken as part of the Contract work
- 17.15 a HSE Management Plan is prepared and provided to CSIRO.
- 17.16 During the performance of all Contract work, the Contractor must provide supervision for all persons employed or engaged by the Contractor (including sub-contractors).
- 17.17 During the performance of all Contract work, the Contractor display appropriate signage and undertake precautions regarding pedestrian and traffic safety during servicing.
- 17.18 The level of supervision must be sufficient to ensure that all work is conducted in accordance with JSEAs, SWMSs or HSE Management Plans provided to CSIRO for the work being undertaken

Schedule 2. Pricing

1. Total Contract Price

- 1.1 The Total Contract Price under this Agreement will not exceed AUD\$ Insert amount made up of the applicable Charges, Fees and Expenses (GST inclusive).
- 1.2 Refer to Annexure A – Pricing Tables for Grounds Maintenance Services

2. Expenses

- 2.1 CSIRO will only pay for Expenses if the Supplier has complied with this Section 2.
- 2.2 Expenses must not include any Supplier mark-up or profit margin.
- 2.3 Expenses incurred by the Supplier will only be reimbursed by CSIRO if they have been pre-approved in writing by CSIRO.
- 2.4 Unless pre-approved by CSIRO as an Expense, the Supplier agrees and acknowledges that all third party costs are at the risk of the Supplier.
- 2.5 To claim payment for a pre-approved Expense, the Supplier must provide relevant certification or supporting documentation (eg. third party invoices) in relation to the payment of the Expense at the time of invoicing.
- 2.6 When incurring Expenses, the Supplier must:
 - (a) take advantage of any preferential purchase rates for products and services that are available to it (and charge those rates to CSIRO); and
 - (b) demonstrate to CSIRO that the Expenses are reasonable and represent best value for money in the circumstances.

Schedule 3. Special Conditions

1. Cyber Security Requirements

1.1 The Supplier must, and must ensure that its Representatives:

- (a) have awareness of, and fully comply with:
 - (i) CSIRO's security requirements, policies and procedures that are notified in writing by CSIRO to the Supplier from time to time, including those specified in this special condition; and
 - (ii) all reasonable security directions and any mandatory training issued by CSIRO relating to the use of the CSIRO Systems;
- (b) provide the Goods and Services in a way that complies with, and ensures CSIRO can comply with the e Security Manual;
- (c) immediately report any security incidents of which it may become aware and confirm the same in writing to CSIRO within no more than 24 hours, including actual, suspected or apparent violations and breaches of this special condition, and the steps taken by the Supplier to address these;
- (d) describe in detail any changes to any security assurance activities and approaches that have been undertaken by the Supplier (and by extension, any Supplier Representatives) to ensure the security of the Goods and/or Services since the Commencement Date. This includes the security of the information and data that relate to the Goods and/or Services;
- (e) if relevant, undertake security testing at regular intervals as appropriate, and make available to CSIRO any security reports, which include, at a minimum:
 - (i) a technical vulnerability assessment of the Supplier's information and communications technology (ICT) infrastructure used in the provision of the Goods and/or Services; and
 - (ii) security penetration testing of the Supplier's ICT infrastructure used in the provision of the Goods and/or Services;
- (f) conduct a security assessment of the Goods and/or Services at any time during the Term at CSIRO's direction. The Supplier must respond promptly in writing to any questions that CSIRO reasonably asks as a result of the assessment;
- (g) provide to CSIRO, when requested, any information that may help to inform CSIRO of the security risk in CSIRO's use of the Goods and/or Services. This may include information generated as a result of ad-hoc security audit activities that CSIRO conducts in respect of the Agreement;
- (h) maintain a documented incident response plan, agreed to by CSIRO, that outlines:
 - (i) guidelines on what constitutes a cyber security incident;
 - (ii) the minimum level of cyber security incident response for each type of incident;
 - (iii) the authority in managing incidents and other relevant incident response roles;
 - (iv) the steps necessary to ensure the integrity of evidence supporting a cyber security incident;
 - (v) the steps necessary to ensure that critical elements of the Goods and/or Services remain operational; and
 - (vi) how to formally report cyber security incidents to CSIRO; and
- (i) if it becomes aware of any actual or suspected:
 - (i) action taken using computer networks that result in an actual or potentially adverse effect on the Goods and/or Services or on CSIRO Material (Cyber Incident); or
 - (ii) any other unauthorised access or use by a third party or misuse, damage or destruction of CSIRO Material or the Goods and/or Services by any person (Other Incident);

must:

- (iii) immediately report the incident and confirm the same in writing to CSIRO within no more than 24 hours; and
 - (iv) comply with any reasonable directions issued by CSIRO in connection with the Cyber Incident or Other Incident, including in relation to:
 - (A) obtaining evidence about how, when and by whom the Goods and/or Services or CSIRO Material have or may have been compromised and providing it to CSIRO, and preserving and protecting that evidence for a period of up to 12 months;
 - (B) implementing any mitigation strategies to reduce the impact of the Cyber Incident or Other Incident or the likelihood or impact of any future similar incident; and
 - (C) preserving and protecting CSIRO Material (including as necessary reverting to any backup or alternative site or taking other action to recover data).
- 1.2 In the event that a Cyber Incident results in the disclosure or potential disclosure of CSIRO Material to the public, CSIRO will be entitled to recover from the Supplier its reasonable costs of investigating and remediating the Cyber Incident.

Working with Children / Vulnerable People

1. Definitions

Child means any individual(s) under the age of 18 years and Children has a similar meaning.

Child/Vulnerable People-Related Personnel means officers, employees, contractors, agents and volunteers of the Supplier involved with the Services who, as part of that involvement, may interact with Children or Vulnerable People.

Child/Vulnerable People Safety Obligations means compliance with all State, Territory or Commonwealth laws relating to the employment or engagement of people who work or volunteer with Children or Vulnerable People in relation to the Services, including mandatory reporting and WWC/VP Checks.

National Principles for Child Safe Organisations means the National Principles for Child Safe Organisations that were endorsed by the Council of Australian Governments in February 2019 (available at: [Child Safe Organisations | Australian Human Rights Commission](#) or as otherwise published by the Australian Government).

Vulnerable People means a child under the age of 18 years or an adult who is experiencing disadvantage who accesses a regulated activity or service related to the disadvantage.

Working With Children/Vulnerable People Checks or **WWC/VP Checks** means the process in place pursuant to Relevant Law to screen an individual for fitness to work with Children or Vulnerable People, however described.

2. Services Involving Children or Vulnerable People

2.1 If any part of the Services will involve the Supplier or its Personnel working directly with, or being reasonably likely to have contact with, any Children or Vulnerable People, the Supplier must:

- (a) comply with all Child/Vulnerable People Safety Obligations;
- (b) ensure that WWC/VP Checks obtained in accordance with this clause remain current and that all Child/Vulnerable People-Related Personnel continue to comply with all Relevant Law for the duration of their involvement in the Services; and
- (c) in relation to the Services:
 - (i) implement the National Principles for Child Safe Organisations;
 - (ii) ensure that all Child/Vulnerable People-Related Personnel implement the National Principles for Child Safe Organisations;
 - (iii) complete and update, at least annually, a risk assessment to identify the level of responsibility for Children/Vulnerable People and the level of risk of harm or abuse to Children/Vulnerable People;
 - (iv) put into place and update, at least annually, an appropriate risk management strategy to manage risks identified through the risk assessment required by this clause 2;
 - (v) provide training and establish a compliance regime to ensure that all Child/Vulnerable People-Related Personnel are aware of, and comply with:
 - (A) the National Principles for Child Safe Organisations;
 - (B) the Supplier's risk management strategy required by this clause;
 - (C) Relevant Law relating to requirements for working with Children/Vulnerable People, including WWC/VP Checks; and
 - (D) Relevant Law relating to mandatory reporting of suspected Child abuse or neglect, however described; and

provide CSIRO with an annual statement of compliance with this clause, in such form as may be specified by CSIRO.

- 2.2 With reasonable notice to the Supplier, CSIRO may conduct a review of the Supplier's compliance with this clause 2.
- 2.3 The Supplier must:
- (a) notify CSIRO in writing of any failure to comply with this clause 2;
 - (b) co-operate with CSIRO in any review conducted by CSIRO of the Supplier's implementation of the National Principles for Child Safe Organisations or compliance with this clause 2; and
 - (c) promptly, and at the Supplier's cost, take such action as is necessary to rectify, to CSIRO's satisfaction, any failure to implement the National Principles for Child Safe Organisations or any other failure to comply with this clause 2.

3. Responsibility for Subcontractors

- 3.1 If Child/Vulnerable People Safety Obligations may be relevant to a Subcontract, the Supplier must ensure that such Subcontract imposes the same obligations and CSIRO rights as specified in this Schedule.

Artificial Intelligence (AI)

1. Definitions

AI System means the machine-based system that, for explicit or implicit objectives, infers, from the input it receives, how to generate outputs such as predictions, content, recommendations, or decisions that can influence physical or virtual environments. Different AI Systems vary in their levels of autonomy and adaptiveness after deployment;

Prohibited AI System means any AI System(s) specified in a mandatory direction issued by the Secretary of the Department of Home Affairs under the Protective Security Policy Framework, prohibiting its use, as amended from time to time;

Supply Chain means any Subcontractor, agent, supplier or entity:

- (a) in a direct or indirect business relationship (whether within Australia or internationally) with the Supplier; or
- (b) which contributes directly or indirectly to the supply of the deliverables to CSIRO,

including entities in the network of business entities or individuals performing, providing, producing, handling, storing, transmitting or distributing:

- (ii) the AI System; or
- (iii) components of the AI System.

2. Supplier use of AI must be approved by CSIRO

- 2.1 Where the Supplier intends to use an AI System for the provision of the Goods and/or Services, it must:
- (a) notify the CSIRO prior to the provision of the Goods and/or Services with details of the proposed AI System technology and functionality relevant to the provision of the Goods and/or Services; and
 - (b) obtain CSIRO's prior written approval for such use.
- 2.2 The Supplier is fully responsible for the performance of this Agreement regardless of any use of an AI System at any point in the Supply Chain used to deliver the AI System. This includes where the use is approved by the CSIRO.

3. Supplier to confirm accuracy

- 3.1 Where the Supplier uses an AI System for the provision of the Goods and/or Services, it must conduct quality assurance checks on the AI System outputs to ensure they are accurate and reliable.

4. Supplier to keep records

- 4.1 Where the CSIRO approves the use of an AI System, the Supplier must ensure that it retains detailed records of:
- (a) the AI System used;
 - (b) the scope of the AI System's use in providing the Goods and/or Services;
 - (c) any data collected, processed and stored by the AI System; and
 - (d) any systems that the AI System interacts with in connection with providing the Goods and/or Services.
- 4.2 The Supplier must promptly provide these records to the CSIRO if asked.

5. Supplier not to use Prohibited AI Systems

- 5.1 The Supplier must ensure that a Prohibited AI System is not used in the provision of the Goods and/or Services, including that it is not:
- (a) used in any part of the Supply Chain used to provide the Goods and/or Services; or
 - (b) installed on CSIRO Systems.
- 5.2 If the Supplier discovers that a Prohibited AI System has been used in contravention of clause 5.1, the Supplier must immediately notify the CSIRO and remove the Prohibited AI System from use, and take any other action reasonably directed by CSIRO.
- 5.3 The CSIRO may immediately terminate this Agreement if the Supplier does not fully comply with clauses 5.1 and 5.2 of this Schedule.

Schedule 4. Terms and conditions

1. Term

1.1 Initial term

The term of this Agreement starts on the Commencement Date and continues until the End Date, unless terminated in accordance with clause 19 (**Term**).

1.2 Extension of Term

CSIRO may, in its absolute discretion, extend this Agreement for an Option Period(s), on the same terms and conditions as this Agreement unless otherwise agreed by the parties in writing, by giving the Supplier a Option Notice, no later than the last date set out in Item 7.

2. Goods and Services

2.1 Supply of Goods and Services

- (a) The Supplier must supply the Goods, Services and/or Deliverables to CSIRO in accordance with:
 - i. the requirements and Milestone Dates in Schedule 1;
 - ii. all applicable Laws;
 - iii. any policies and procedures specified in this Agreement, including in Item 10 or the Schedules (Applicable Policies); and
 - iv. all relevant Australian standards and guidelines (or, if none apply, relevant international standards and guidelines) and, if there is an applicable industry best practice standard, in accordance with that standard, together with any standards specified in Item 10 or the Schedules (Applicable Standards); and
 - v. the reasonable directions of CSIRO.
- (b) The Supplier must also comply with any additional policies, procedures, or standards specified by CSIRO from time to time, provided that if such compliance would result in a material increase in the cost to the Supplier of providing the Goods and/or Services, they will only take effect if they are included using the variation procedure set out in clause 23.5.
- (c) On request by CSIRO, the Supplier must provide details of how it complies with the Applicable Policies and Applicable Standards, including providing evidence of any relevant certifications required under the Applicable Policies or Applicable Standards.

2.2 Standard of Services

The Supplier must perform the Services:

- (a) to the best of the Supplier's knowledge and expertise; and
- (b) with a professional degree of care, skill and diligence.

2.3 Inspection and Acceptance of Goods, Services and Deliverables

- (a) CSIRO may at any time inspect the Goods, Services and/or how the Supplier is manufacturing or providing them to ascertain whether the Supplier is complying with the requirements of this Agreement. For this purpose, the Supplier must (at reasonable times and on reasonable notice) give CSIRO's representatives access to the premises at which the Supplier is performing this Agreement, and permit CSIRO to take copies of relevant records, provided in doing so CSIRO must not unreasonably delay or disrupt Supplier's performance of the Agreement.
- (b) If at any time during the Term, or within 12 months after final provision of the Goods and/or Services, CSIRO is not satisfied that the Goods, Services, and/or Deliverables, or any part of them, do or will conform with this Agreement, CSIRO may by written notice to the Supplier (a **Rectification Notice**):

- i. identify the Goods, Services or Deliverables that CSIRO believes have not been, or are not being, satisfactorily provided or completed;
 - ii. indicate what action the Supplier must take to rectify them; and
 - iii. specify a time and date for completion of that rectification.
- (c) The Supplier must rectify the Goods, Services or Deliverables as specified in any notice given under clause 2.3(b) at its own expense. If the Supplier fails to make such rectification to the reasonable satisfaction of CSIRO or within the timeframes required by CSIRO in a notice issued under clause 2.3(b), then without limiting the Supplier's warranties and obligations under this Agreement, CSIRO may:
 - i. perform or engage another contractor to perform any necessary rectification works or complete the relevant Services or provide the relevant Goods or Deliverables; and
 - ii. recover any expense incurred under clause 2.3(c)i as a debt due to CSIRO.
- (d) If a Rectification Notice requires the Supplier to remove Goods or Deliverables from CSIRO's premises, then unless CSIRO agrees otherwise in writing, the Supplier must remove them from CSIRO's premises promptly (and in no event later than 10 Business Days from provision of CSIRO's notice), and the Supplier is responsible for all costs in relation to such removal and subsequent redelivery.
- (e) The Supplier acknowledges that payment by CSIRO and/or CSIRO's acceptance of any Deliverable is without prejudice to any right of CSIRO to require the Supplier to rectify any issues with that Deliverable if it is subsequently found not to be compliant with the requirements of this Agreement.
- (f) If Schedule 1 requires the Supplier to submit a sample of Goods for approval by CSIRO, the Supplier must not proceed to bulk manufacture those Goods until CSIRO has approved the sample.
- (g) Clauses 2.3(b) to 2.3(e) survives the expiry of this Agreement.

3. Title and risk in Goods and Deliverables

- (a) Except as noted in 10.1(a), title in Goods and Deliverables passes to CSIRO when CSIRO pays for them.
- (b) Risk in Goods or other physical Deliverables passes to CSIRO on delivery. If Goods or Deliverables are required to be removed from CSIRO's premises under a Rectification Notice, risk in those Goods or Deliverables reverts to the Supplier on the Removal Date.

4. Supplier Representatives

4.1 Subcontracting

- (a) The Supplier must provide advance written notice to CSIRO of any Subcontractor that the Supplier proposes to use in the supply of the Goods and/or Services (**Subcontractor Notice**) and CSIRO may, acting reasonably, reject the proposed appointment and, if it does, CSIRO will provide its reasons for doing so.
- (b) The Supplier must not Subcontract any part of its obligations under this Agreement to a Subcontractor that:
 - i. has not been approved by CSIRO;
 - ii. has been named by the Workplace Gender Equality Agency as not complying with the *Workplace Gender Equality Act 2012* (Cth) (**WGE Act**), regardless whether CSIRO purports to approve such subcontracting; or
 - iii. is an Inappropriate Person.
- (c) The Supplier must remain the sole point of contact for CSIRO for all Subcontracted obligations. Entering into, terminating, rescinding or otherwise ending a Subcontract, does not relieve the Supplier from liability for the performance of any of its obligations under this Agreement.

- (d) In relation to the provision of the Goods and/or Services, the Supplier:
 - i. must, on request by CSIRO, provide to CSIRO the names of any of the Supplier's Subcontractors;
 - ii. agrees that CSIRO may disclose publicly the names of any of the Supplier's Subcontractors; and
 - iii. must ensure that any Subcontractor agrees that CSIRO may disclose the Subcontractor's name publicly.

4.2 Removal or replacement of Representatives

- (a) CSIRO may at any time, by notice, require the Supplier to remove any of its Representatives from work in respect of this Agreement if in CSIRO's reasonable opinion they:
 - i. do not meet the standards or requirements specified in clause 5.1(e), or
 - ii. have otherwise failed to act in compliance with this Agreement.
- (b) On receiving notice under clause 4.2(a), the Supplier must remove the Representative from work in respect of this Agreement and will not be entitled to make a Claim for payment for any Losses arising out of or in relation to the removal of the Representative.
- (c) Within 5 Business Days of receiving notice from CSIRO to remove any of its Representatives under clause 4.2(a), the Supplier must find one or more replacement(s) of appropriate expertise.
- (d) If the Supplier is unable to provide an acceptable replacement Representative(s) within the foregoing period, CSIRO may immediately terminate this Agreement.

5. Supplier warranties

5.1 Goods and Services warranties

The Supplier warrants (without limiting any warranties applied by law) that:

- (a) all Deliverables, and any other information, reports or other material given to CSIRO under this Agreement will be correct, complete and not misleading;
- (b) all Goods, and any other Deliverables, provided under this Agreement will be of merchantable quality and free from defects;
- (c) the Goods and/or Services will be fit for the purposes for which they are provided;
- (d) all Services provided will be provided in a manner that is compliant with any relevant Australian standard, industry standard or applicable international organisation standard (which ever standard is highest) and with all applicable Laws; and
- (e) it and its Representatives:
 - i. have the necessary and appropriate qualifications, experience, skill, knowledge, expertise and competence to perform the Services; and
 - ii. (if applicable) will be authorised or hold such licences, permits, authorisations, registrations and affiliations as are required by Law, applicable professional bodies or this Agreement in order to perform the Services.

5.2 General warranties

The Supplier warrants that:

- (a) when title to a Deliverable transfers to CSIRO pursuant to clause 3(a), CSIRO will receive good and unencumbered title to that Deliverable;
- (b) it has the necessary rights to vest the IPR and grant the licences as provided for in clause 10 and that any use of the Background IP, Third Party IP and Contract Material by CSIRO in accordance with the terms of this Agreement will not infringe any person's IPR, rights in respect of confidential information or moral rights (provided that, in respect of patent rights, the Supplier will not be in breach of this warranty if it has undertaken all reasonable steps, including searches, to ascertain if there is an infringement of patent rights);

- (c) the medium on which any copy of a Deliverable is furnished to CSIRO will, under normal use, be free from defects in materials, design and workmanship and Harmful Code;
- (d) it will not, nor will it suffer or permit any third party under its direction or control to, negligently introduce into CSIRO's systems any Harmful Code;
- (e) if any Harmful Code is introduced into CSIRO's systems in connection with the Supplier's performance of this Agreement, it will promptly report that introduction to CSIRO;
- (f) if the Supplier is a trustee, it enters this Agreement personally and in its capacity as trustee and has full power and authority under the relevant trust instrument(s) to do so; **1**
- (g) neither it nor any of its Representatives have an actual or perceived conflict of interests, or anticipate such a conflict, relevant to the performance of this Agreement (other than as has been disclosed to, and approved in writing by, CSIRO prior to entry into this Agreement);
- (h) if the Supplier or its Representatives become aware of an actual or perceived conflict of interests, or anticipate such a conflict during the Term of this Agreement, the Supplier will immediately notify CSIRO of the details of such conflict and the proposed methods of mitigating such conflict; and
- (i) any signatory to this Agreement has the authority to bind the Supplier to this Agreement, including through the use of an electronic signature.

5.3 Continuing obligation

The warranties in clauses 5.1 and 5.2 are given on a continuing basis throughout the Term and the Supplier must notify CSIRO in writing of anything that happens or may happen that may affect the ongoing validity of any of the warranties in this Agreement or the Supplier's ability to perform its obligations under this Agreement.

6. Invoicing procedure

6.1 Timing of invoicing

The Supplier must issue invoices to CSIRO detailing the applicable Charges, Fees and Expenses for the relevant Goods and/or Services on the dates or at the frequencies specified in Schedule 2, and in accordance with the invoice requirements in clause 6.2.

6.2 Invoice content

To be correctly rendered, Invoices must be a Tax Invoice in a form acceptable to CSIRO, addressed to CSIRO at the address or via the method specified in the Purchase Order, or any substitute method notified in writing to the Supplier from time to time and include:

- (a) the name, number and date of this Agreement;
- (b) the invoice number, purchase order/work order number, CSIRO Contract Administrator's name and Supplier's ABN;
- (c) details of the work completed and the Charges and/or Fees (exclusive and inclusive of GST), and substantiation of Expenses (if any); and
- (d) payment method details.

7. Payment

7.1 Payment of invoices

- (a) CSIRO will pay the Supplier the applicable Charges, Fees and Expenses within 20 days of receipt of a Tax Invoice if:
 - i. it is correctly rendered in accordance with clause 6.2; and
 - ii. the CSIRO Contract Administrator has assessed the Supplier's performance and is satisfied that the Goods in the invoice have been supplied and/or the Services in the invoice have been performed in accordance with this Agreement.

- (b) The CSIRO Contract Administrator's assessment and any payment of an invoice does not constitute Acceptance of the relevant Goods, Services or other Deliverables.
- (c) The Charges, Fees and Expenses payable by CSIRO under this Agreement:
 - i. cover all internal and third party costs that may be incurred by the Supplier in relation to the provision of the Goods and/or Services (including Subcontractor costs), including all Taxes, charges, duties and disbursements; and
 - ii. will not exceed the Total Contract Price.

7.2 Cost changes at Supplier's risk

The Supplier is not entitled to any payment for any additional amounts based on changes in the cost of labour, materials or other resourcing costs, exchange rate fluctuations or any other changes to the costs incurred by the Supplier in supplying the Goods and/or Services.

7.3 Disputed invoice

CSIRO may withhold payment of any invoiced amount that it disputes until that dispute is resolved in accordance with this Agreement.

7.4 Taxes

Unless expressly specified otherwise:

- (a) all amounts payable, consideration provided or monetary limits in this Agreement are inclusive of any Taxes; and
- (b) the Supplier must not charge CSIRO any additional amount in relation to any Tax.

7.5 Withholding

If CSIRO is required by Law to deduct, or to withhold, from any payment to be made to the Supplier an amount on account of any Tax or superannuation, or to meet any other statutory requirement, then CSIRO will:

- (a) make the required deduction or withholding;
- (b) pay the appropriate Government Agency the full amount of that deduction or withholding in accordance with the relevant Law;
- (c) deliver to the Supplier a copy of the receipt for that payment; and
- (d) pay the balance of the amount required to be paid to the Supplier under this Agreement (if any) and, in doing so, CSIRO will have fulfilled its payment obligations to the Supplier.

7.6 Set-off

- (a) The amount of any liability owed by the Supplier to CSIRO under or in relation to this Agreement or any other Claim may be deducted from or set off against any amount payable by CSIRO to the Supplier under this Agreement. Any deduction or set-off will not prevent CSIRO from recovering the balance of the liability owed from the Supplier.
- (b) CSIRO will give the Supplier notice of all deductions or set-offs under clause 7.6(a) when paying the affected invoice.

8. GST

8.1 Interpretation

In this clause 8, a word or expression defined in the GST Law has the meaning given to that term in the GST Law.

8.2 GST warranty

The Supplier warrants that, unless otherwise advised to CSIRO in writing, it is registered for GST and will immediately advise CSIRO if it ceases to be registered for GST.

8.3 Prices GST inclusive

Unless stated otherwise, the Total Contract Price, Charges, Fees and Expenses are inclusive of GST.

8.4 GST gross up

If a party (**GST Supplier**) makes a supply under or in relation to this Agreement in respect of which GST is payable, the recipient of the supply (**Recipient**) must pay to the GST Supplier an additional amount equal to the GST payable on the supply (**GST Amount**).

8.5 Reimbursements

If a party must reimburse or indemnify another party for a Loss, the amount to be reimbursed or indemnified is first reduced by the amount of any input tax credit to which the other party is entitled for the Loss and then increased in accordance with clause 8.4.

8.6 Exclusion of GST from calculations

If a payment is calculated by reference to or as a specified percentage of another amount or revenue stream, that payment will be calculated by reference to or as a specified percentage of the amount or revenue stream exclusive of GST.

8.7 GST and Expenses

The Supplier must not charge CSIRO any amount for an Expense that is in excess of:

- (a) the net amount incurred by the Supplier in respect of the Expense exclusive of any GST (the **GST Exclusive Expense**); plus
- (b) an amount equal to the Supplier's GST liability on the GST Exclusive Expense if and to the extent that the reimbursement is consideration for a taxable supply by the Supplier to CSIRO.

8.8 Adjustment event

If and to the extent an adjustment event arises in respect of a supply made by the Supplier to CSIRO under this Agreement, then:

- (a) if the Supplier's corrected GST amount is less than the previously attributed GST amount, the Supplier must refund the difference to CSIRO; and
- (b) if the Supplier's corrected GST amount is greater than the previously attributed GST amount, CSIRO will pay the difference to the Supplier,
- (c) and the Supplier must issue an adjustment note to CSIRO.

8.9 Tax Invoice

A party need not make a payment for a taxable supply made under or in relation to this Agreement until it receives a Tax Invoice for the supply to which the payment relates, and (if applicable) the other requirements of clause 7.1(a) have been met.

9. Force Majeure Events

- (a) A party is not liable for any delay or failure to perform its obligations under this Agreement if:
 - i. the delay or failure is caused by a Force Majeure Event; and
 - ii. the non-performing party complies with clause 9(b).
- (b) The non-performing party must:
 - i. give written notice to the other party of the Force Majeure Event as soon as it becomes aware of it; and
 - ii. use reasonable endeavours to remedy the failure or delay to the extent possible, mitigate the impact of the failure or delay, and restart performance of its obligations as soon as possible.

10. Intellectual Property Rights (IPR)

10.1 Ownership, licensing and provision of Contract Material and IPR and Confidential information embodied in Contract Material

- (a) Ownership of Contract Material, and IPR in Contract Material, is assigned to, and will vest in, CSIRO on the creation of the Contract Material. The Supplier must promptly sign any documents and undertake any further steps required to give effect to, or to complete, that assignment.
- (b) The Supplier grants to, or will procure for, CSIRO, at no cost, a perpetual, irrevocable, non-exclusive, world-wide, fee and royalty-free licence (including the right to sublicense) of any Confidential Information, including any technical information and know-how, that is embodied in the Contract Material as required to enable the full and unrestricted use of the Contract Material by CSIRO.
- (c) CSIRO grants to the Supplier, at no cost, a fee and royalty-free, revocable, non-exclusive, limited licence (including the right to sublicense to Subcontractors that are permitted under clause 4.1) to use, reproduce, adapt, modify, communicate to the public, but not commercially exploit, the Contract Material and any associated IPR during the Term, solely for the purpose of performing its obligations under this Agreement.
- (d) If the Supplier wishes to use any Contract Material and associated IPR other than for the purpose of performing its obligations under this Agreement, or to sublicense it to any party other than a Subcontractor that is permitted under clause 4.1, it may only do so with express prior written permission from CSIRO and subject to any directions or restrictions imposed by CSIRO.

10.2 Background IP licence

The Supplier retains ownership of its Background IP, but grants to, or will procure for, CSIRO, at no cost, a perpetual, irrevocable, non-exclusive, world-wide, fee and royalty-free licence (including the right to sublicense) to use, reproduce, adapt, modify, communicate to the public and commercially exploit all Background IP, and any material in which it is embodied, that is supplied to CSIRO pursuant to this Agreement (including in any Goods or other Deliverables, or required for the provision of Services), for the purpose of receiving the full benefit of the Goods and Services, including making unrestricted use of the Contract Material and any associated IPR.

10.3 Rights to Third Party IP

The Supplier must:

- (a) ensure that, except to the extent otherwise provided in Item **Error! Reference source not found.**, any Third Party IP, and any material in which it is embodied, that is supplied to CSIRO pursuant to this Agreement (including in any Goods or other Deliverables, or required for the provision of Services) is supplied on terms and conditions that give CSIRO the right to use, reproduce, adapt, modify and communicate to the public and commercially exploit (including the right to sublicense) all of that Third Party IP for the purpose of receiving the full and unrestricted benefit of the Goods and/or Services, including making unrestricted use of the Contract Material and any associated IPR; or
- (b) obtain CSIRO's prior written consent to any Third Party IP licence terms that do not meet the requirements of clause 10.3(a) and that are not included in Item **Error! Reference source not found.**

10.4 Continued use of Background IP, Third Party IP and Contract Material

If someone Claims, or CSIRO reasonably believes that someone is likely to Claim, that CSIRO's use of all or part of the Background IP, Third Party IP or Contract Material (or associated IPR) infringes their IPR, the Supplier must, in addition to the indemnity under clause 18.1 and to any other rights that CSIRO may have against it (other than in circumstances caused by the conduct of CSIRO or the inclusion of CSIRO Material in the Contract Material), promptly, at the Supplier's cost:

- (a) use its best efforts to secure the rights for CSIRO to continue to use the affected Background IP, Third Party IP or Contract Material (or IPR) free of any Claim for infringement; or
- (b) replace or modify the affected Background IP, Third Party IP or Contract Material (or IPR) so that the Background IP, Third Party IP or Contract Material (or IPR), or the use of them, does not infringe the IPR of any other person without any degradation of the performance or quality of the affected Background IP, Third Party IP and Contract Material (or IPR).

11. Provision, use and licensing of CSIRO Material and CSIRO IP

11.1 Provision of CSIRO Material

CSIRO will provide the CSIRO Material required by, and in accordance with Schedule 1.

11.2 Licence of CSIRO IP

- (a) Subject to clause 11.2(b) and any conditions or limitations of third parties notified in writing by CSIRO to the Supplier, CSIRO grants the Supplier, at no cost, a fee and royalty-free, non-exclusive licence (including the right to sublicense to Subcontractors that are permitted under clause 4.1) to use, reproduce, adapt, modify and communicate to the public, but not commercially exploit, any CSIRO IP during the Term, solely for the purpose of performing its obligations under this Agreement.
- (b) The Supplier must not use the CSIRO's name, trademarks or logos without CSIRO's prior written consent.

11.3 Conditions of use

The Supplier must, at all times, ensure that the CSIRO Material:

- (a) is used or transmitted in a manner that is consistent with the Supplier's obligations under this Agreement and at Law;
- (b) except if and to the extent the agreed use of the CSIRO Materials dictates otherwise, is:
 - i. reasonably protected against loss, corruption, unauthorised access, use, modification, disclosure or other misuse;
 - ii. kept safe and in its original state (fair wear and tear excepted);
 - iii. not transferred outside of Australia without the prior written consent of CSIRO; and
 - iv. encrypted to ensure confidentiality and integrity of any CSIRO Material that is transmitted across any public network infrastructure.

11.4 Dealing with CSIRO Material on termination or expiry

- (a) Subject to clause 11.4(b), on expiry or termination of this Agreement, or on written request from CSIRO, the Supplier must:
 - i. immediately return to CSIRO all CSIRO Material;
 - ii. if requested by CSIRO, destroy all CSIRO Material comprising of documentation (including all archival copies) in its custody or control; and
 - iii. pay the cost of repair or replacement (at CSIRO's option) of any CSIRO Material comprising equipment that has been degraded or destroyed beyond fair wear and tear (when this was not the intended use).
- (b) The obligation in clause 11.4(a) does not prevent the Supplier from retaining and using one copy of CSIRO Material after the Term:
 - i. solely for the purposes of complying with its record keeping, reporting and regulatory obligations; or
 - ii. that is stored in electronic back-up tapes or records maintained in the ordinary course of the Supplier's business that are not readily capable of search or destruction, provided that the CSIRO Material and CSIRO IP is always treated as confidential to CSIRO.

12. Confidential Information

- (a) Each party must, and must take reasonable steps to ensure that its Representatives do, protect the Confidential Information of the other party and not make public, disclose or use any Confidential Information of the other party except in accordance with this Agreement, if required to do so by Law or a stock exchange, or as strictly required in relation to legal proceedings relating to this Agreement.

- (b) CSIRO may disclose the Supplier's Confidential Information:
 - i. to the responsible Minister or any Agency having authority over CSIRO;
 - ii. for public accountability reasons including in response to a request by a House or Committee of the Parliament of the Commonwealth of Australia; and
 - iii. to the extent permitted by clause 10.1(b).
- (c) The Supplier may disclose CSIRO's Confidential Information as permitted by clause 11.2.
- (d) If the Supplier becomes aware of any infringement or possible or alleged infringement of its obligations under this clause 12, or the corresponding obligations of any of its Representatives, the Supplier must:
 - i. notify CSIRO in writing immediately; and
 - ii. comply with any reasonable directions from CSIRO with respect to remedying that infringement.

13. Security

13.1 Access to CSIRO Premises

- (a) To the extent the Supplier's performance of this Agreement requires attendance at any CSIRO premises (CSIRO Premises), CSIRO grants the Supplier a non-exclusive, temporary and revocable licence to enter such CSIRO Premises, at times to be agreed with CSIRO, for the sole purpose of performing this Agreement.
- (b) Access to CSIRO Premises is restricted to only those Supplier Representatives who need to be on the CSIRO Premises for the purpose of the Supplier performing the Agreement.
- (c) The Supplier must ensure that while on CSIRO Premises the Supplier's Representatives comply with the policies and procedures notified by CSIRO or displayed at the CSIRO Premises, and with all lawful and reasonable directions as may be given by CSIRO from time to time in relation to:
 - i. sign-in and visitor badge requirements;
 - ii. which areas within the CSIRO Premises they are permitted to enter;
 - iii. health and safety of personnel, property and the environment;
 - iv. use of any vehicles, equipment, materials or facilities; and
 - v. security of the CSIRO Premises.
- (d) The Supplier acknowledges that in visiting the CSIRO Premises, its Representatives may interact with staff of CSIRO or other parties, and/or observe or receive information from those parties. The Supplier must ensure its Representatives:
 - i. do not to interfere with the activities of any other party; and
 - ii. maintain the confidentiality of information of any other party which they may observe or receive.

13.2 Access to CSIRO Systems

- (a) To the extent the Supplier's performance of this Agreement requires access to any of CSIRO's IT systems or equipment (CSIRO Systems), or any software provided by Supplier will interface with CSIRO Systems, or if Supplier's Representatives obtain access to CSIRO's Systems for any reason, the Supplier must and must ensure its Representatives comply with this clause.
- (b) All users of CSIRO Systems are required to comply with CSIRO's IT policies, which may be updated by CSIRO from time to time as reasonably required, including changes required by law.
- (c) If the Supplier and/or any Supplier Representative is provided with an account to access CSIRO Systems, the Supplier must ensure the account details and passwords are securely maintained and used only for the purposes provided, by the individuals to whom they are issued.

- (d) Without limiting sub-clause (b), the Supplier must not, and must ensure that any software it provides does not:
- i. allow unauthorised persons to have access to CSIRO Systems or any data processed or stored on CSIRO Systems;
 - ii. attempt to access information of CSIRO or any third party except to the extent necessary for performance of this Agreement;
 - iii. upload any material to the CSIRO Systems unless this is necessary for the performance of this Agreement and the Supplier has the requisite rights or licences to do so;
 - iv. upload to, store on, or transmit from the CSIRO Systems any unlawful or inappropriate material, such as material that is indecent, offensive, defamatory, discriminatory or extremist, or that is in breach of any laws including any laws governing copyright works or other IP rights;
 - v. transmit, transfer or export any data which may be subject to any laws, regulations or prohibition notices which prohibit the export, re-export, transfer or release of that data to sanctioned countries, territories, regimes, individuals or entities unless Supplier has obtained the necessary export permit or official clearance to do so;
 - vi. introduce any malicious computer programs or code (including computer viruses, trojan horses or worms) into the CSIRO Systems that may jeopardise the integrity of the CSIRO Systems or data stored on them;
 - vii. use CSIRO Systems in any way that may impair their availability or accessibility; or
 - viii. attempt to override any security or protective measures embedded in the CSIRO Systems.

13.3 Notification and co-operation

- (a) The Supplier must immediately notify CSIRO if it knows or reasonably suspects that any breach of this clause 13 has occurred, and must co-operate promptly with any steps taken or directions given by CSIRO to investigate and/or remediate the issue.
- (b) Where CSIRO is of the opinion that the Supplier or its Representatives may have breached this clause 13, CSIRO reserves the right to:
 - i. revoke or suspend Supplier's access to CSIRO Premises and/or the CSIRO Systems; and
 - ii. where appropriate, notify such breach or suspected breach to a relevant government authority with responsibility for administering laws, regulations or prohibitions which may have been broken.

13.4 Security checks

- (a) The Supplier must, and must ensure that any Representative of the Supplier providing the Goods and/or Services, undergoes relevant security checks, clearances or authorisations as required by Law or as otherwise specified by CSIRO in relation to performing this Agreement.
- (b) All costs associated with obtaining security clearances, authorisations, reviews or audits or security performance monitoring must be borne by the Supplier, unless otherwise agreed in writing by CSIRO.

13.5 Termination

If the Supplier breaches this clause 13, CSIRO may immediately terminate this Agreement.

14. Work Health and Safety

- (a) The Supplier must comply with, and must ensure that each of its Representatives complies with, the applicable WHS Laws when supplying the Goods and/or Services, including the obligation to consult, co-operate and co-ordinate activities with all persons who have a work, health and safety duty in relation to the same matter.

- (b) A Supplier that provides Plant (as defined in the WHS Act) to CSIRO must ensure that it complies with section 25 of the WHS Act and any applicable WHS Regulations, including regulations 61 and 198.
- (c) The Supplier, by Subcontracting any of the work under this Agreement, will not be relieved of its obligations to consult in relation to work, health and safety matters in accordance with the WHS Laws and shall be responsible for all acts and omissions of its Subcontractors.
- (d) In order to enable CSIRO to comply with its obligations under the WHS Laws, the Supplier must, within 10 Business Days of a request by CSIRO, provide any information and/or documentation relating to work, health and safety matters, including in relation to its Subcontractors, to CSIRO.
- (e) If a Notifiable Incident (as defined in sections 35-37 of the WHS Act) occurs in connection with work carried out under this Agreement:
 - i. on Commonwealth premises;
 - ii. that involves Commonwealth personnel; or
 - iii. that involves a Commonwealth specified system of work,
 the Supplier must promptly, and in any case within no more than 24 hours:
 - iv. report the incident to CSIRO;
 - v. provide to CSIRO copies of any notices or other documentation provided to, or issued by, the relevant Commonwealth, State or Territory regulator in relation to the Notifiable Incident;
 - vi. provide to CSIRO such other information as may be required by CSIRO to facilitate the notification to or investigation by the Commonwealth regulator of the Notifiable Incident in accordance with the WHS Laws; and
 - vii. provide other reasonable assistance required by CSIRO to undertake mandatory incident reporting.
- (f) Except to the extent inconsistent with the express requirements of this Agreement, CSIRO may direct the Supplier to take specified measures that CSIRO considers reasonably necessary to comply with applicable legislation relating to work health and safety, including the WHS Laws, in relation to the provision of the Goods and/or Services. The Supplier must comply with the direction unless the Supplier demonstrates, to the reasonable satisfaction of CSIRO, that it is already complying with the WHS Laws in relation to the matter to which the direction relates or that the direction goes beyond what is reasonably necessary to achieve compliance with the WHS Laws.
- (g) The Supplier must ensure that all of its Subcontracts contain equivalent provisions to those set out in this clause 14.

15. Commonwealth requirements

15.1 Anti-Corruption

The Supplier:

- (a) acknowledges that it, and its Representatives, are each a 'contracted service provider' for the purposes of the *National Anti-Corruption Commission Act 2022* (Cth) (**NACC Act**); and
- (b) must comply with any reasonable request, policy or direction issued by CSIRO and otherwise cooperate with CSIRO in relation to any action taken by CSIRO required or authorised by the NACC Act.

15.2 Privacy

If the Supplier deals with Personal Information under or in relation to this Agreement, the Supplier must:

- (a) only use that Personal Information for the purposes of performing its obligations under this Agreement;

- (b) not do any act or engage in any practice that would breach an Australian Privacy Principle (as defined in the Privacy Act) if done or engaged in by CSIRO and must not do or omit to do anything that causes CSIRO to be in breach of an Australian Privacy Principle;
- (c) ensure that any Subcontract entered into for the purpose of fulfilling the Supplier's obligations under this Agreement contains provisions to ensure that the Subcontractor has the same awareness and obligations as the Supplier has under clauses 15.2 and 15.3;
- (d) if the Supplier becomes aware of any infringement or possible or alleged infringement of its obligations under clause 15.2 or 15.3, or the corresponding obligations of any of its Representatives, the Supplier must notify CSIRO in writing immediately and comply with any reasonable directions from CSIRO with respect to remedying that infringement; and
- (e) only store and use Personal Information on Australian-based servers.

15.3 Eligible Data Breach

- (a) If the Supplier becomes aware that there are reasonable grounds to suspect that there may have been an Eligible Data Breach (as defined in the Privacy Act) in relation to any Personal Information obtained by the Supplier as a result of this Agreement or during the course of providing the Goods and/or Services, the Supplier must:
 - i. notify CSIRO in writing as soon as possible, which must be no later than within three (3) days of becoming aware; and
 - ii. unless otherwise directed by CSIRO, carry out an assessment in accordance with the requirements of the Privacy Act.
- (b) If the Supplier is aware that there are reasonable grounds to believe there has been, or if CSIRO notifies the Supplier that there has been, an Eligible Data Breach in relation to any Personal Information obtained as a result of this Agreement or during the course of providing the Goods and/or Services, the Supplier must:
 - i. take all reasonable action to mitigate the risk of the Eligible Data Breach causing serious harm to any of the individuals to whom it relates;
 - ii. unless otherwise directed by CSIRO, take all other action necessary to comply with the requirements of the Privacy Act; and
 - iii. take any other action reasonably directed by CSIRO.
- (c) In the event of an Eligible Data Breach by the Supplier that potentially or actually results in public disclosure, of Personal Information, CSIRO will be entitled to recover from the Supplier its reasonable costs of investigating the Eligible Data Breach.

15.4 Access to Supplier's premises, records and information

- (a) The Supplier must keep, maintain and audit adequate accounts, books and records, in sufficient detail to enable the amounts payable by CSIRO under this Agreement to be determined and verified.
- (b) The Supplier and its Representatives must grant CSIRO, its nominees and the Auditor-General access at reasonable times and on reasonable notice (except if there is a suspected breach of this Agreement, in which case no notice is required) to the Supplier's and its Representatives' premises and data, records, accounts and other material relevant to the performance of this Agreement, including in connection with a request made under the *Freedom of Information Act 1982* (Cth), however and wherever stored or located, in the Supplier's or its Representatives' custody, possession or control, for inspection and copying.
- (c) The Supplier must also provide CSIRO or its nominee relevant information (including Personal Information) relating to the Supplier and its Representatives for the purposes of preventing, detecting, investigating or dealing with a fraud or security incident relating to this Agreement. When providing Personal Information under this clause, the Supplier warrants it will have obtained the consent of or provided reasonable notification to the person in accordance with the Privacy Act.

15.5 WGE Act

If the Supplier is a 'relevant employer' for the purposes of the WGE Act, it must:

- (a) comply with its obligations under the WGE Act;
- (b) promptly notify CSIRO if it becomes non-compliant with the WGE Act or ceases to be a 'relevant employer' during the Term; and
- (c) provide CSIRO an updated letter of compliance with the WGE Act on each occasion it is obtained from the issuing authority.

15.6 Engagement of Illegal Workers prohibited

- (a) The Supplier must ensure that each person engaged by the Supplier would not, in doing the work for which they are engaged, be an Illegal Worker.
- (b) The Supplier must make compliance by any Subcontractors with the provisions of this clause a condition of any Subcontract.
- (c) The Supplier must remove, or cause to be removed, any Illegal Worker from any involvement in the provision of the Goods and/or Services.

15.7 Regulatory change

If, and to the extent that, during the Term, any Laws, regulations or Commonwealth policies that govern any aspect of this Agreement change, so as to make any aspect of this transaction unlawful or non-compliant, then the parties agree to modify this Agreement (including by executing a variation) to the extent reasonably necessary to accommodate the applicable legal, regulatory or policy change.

15.8 Fraud Control

- (a) The Supplier must, and must ensure that its Representatives, take all reasonable steps to prevent and detect fraud in relation to this Agreement. The Supplier acknowledges that fraud on the part of Supplier or its Representatives in relation to this Agreement constitutes a breach of this Agreement.
- (b) The Supplier must notify CSIRO in writing immediately if it knows or has reason to suspect that any fraud has occurred or is occurring or is likely to occur in relation to this Agreement, including by the Supplier or its Representatives.
- (c) If an investigation finds that the Supplier or its Representatives have committed fraud or failed to take reasonable steps to detect or prevent fraud in relation to this Agreement, then without prejudice to any other available remedy, Supplier must reimburse or compensate CSIRO for the cost of such investigation.

15.9 Inappropriate Persons

- (a) **Inappropriate Person** means any person or organisation that is listed on one or more of the following lists:
 - i. 'Regulation 8 Consolidated List' maintained by the Australian Government Department of Foreign Affairs and Trade (<https://www.dfat.gov.au/international-relations/security/sanctions/consolidated-list>); and
 - ii. 'List of Terrorist Organisations' maintained by the Australian government (<https://www.nationalsecurity.gov.au/what-australia-is-doing/terrorist-organisations/listed-terrorist-organisations>); and
 - iii. listed on the 'World Bank's Listing of Ineligible Firms and Individuals' posted at: <https://www.worldbank.org/en/projects-operations/procurement/debarred-firms>.
- (b) The Supplier represents and warrants, on the Commencement Date and on the dates of execution of any variation, that it is not and none of its Representatives are:
 - i. listed as an Inappropriate Person;
 - ii. a member of an entity that is an Inappropriate Person; or

- iii. providing direct or indirect support, resources or assets (including any grant monies) to any Inappropriate Person.

15.10 Modern Slavery

- (a) In this clause 15.10:
 - i. **Modern Slavery** has the meaning given to that term in the *Modern Slavery Act 2018* (Cth); and
 - ii. **Modern Slavery Laws** means any law, statute or regulation that:
 - (A) prohibits Modern Slavery (including exploitation of a worker, human trafficking, slavery, servitude, forced labour, debt bondage or deceptive recruiting for labour or services, or similar types of conduct) and is applicable or otherwise in force in the jurisdiction in which CSIRO or the Supplier is registered or conducts business or in which activities relevant to this Agreement are to be performed; or
 - (B) requires the Supplier to issue disclosures to the public and/or any Agency, connected with Modern Slavery in its operations and supply chains.
- (b) The Supplier must ensure that:
 - i. it takes reasonable steps to identify, assess and address risks of Modern Slavery practices in the operations and supply chains used in the performance of this Agreement;
 - ii. in performing its obligations in connection with this Agreement, it does, and it ensures that its Representatives do:
 - (A) not engage in any conduct or omission that may contravene any Modern Slavery Laws;
 - (B) comply with any Commonwealth policy relating to Modern Slavery; and
 - (C) provide all assistance required by the Commonwealth to fulfil its obligations, including reporting obligations, under the *Modern Slavery Act 2018* (Cth); and
 - iii. if at any time it becomes aware of Modern Slavery practices in the operations and supply chains used in the performance of this Agreement, as soon as reasonably practicable, it takes all reasonable action to address or remove these practices, including when relevant by addressing any practices of other entities in its supply chains.
- (c) The Supplier represents and warrants to CSIRO that:
 - i. neither the Supplier nor its Representatives:
 - (A) have been convicted of any offence involving Modern Slavery; and
 - (B) having made reasonable enquiries, to the best of its knowledge, have been or are the subject of any investigation, inquiry or enforcement proceedings by any governmental, administrative or regulatory body regarding any offence or alleged offence of any Modern Slavery Laws; and
 - ii. it conducts its business in a manner that is compliant with Modern Slavery Laws.
- (d) The Supplier must promptly notify CSIRO in writing as soon as it becomes aware of a potential, suspected or actual breach by it or any of its Representatives of any Modern Slavery Laws in connection with this Agreement.
- (e) The Supplier must cooperate in good faith with CSIRO in investigating the circumstances relevant to any potential, suspected or actual breach of any Modern Slavery Laws.

15.11 Commonwealth Supplier Code of Conduct

- (a) For the purposes of this clause, "Code" means the 'Commonwealth Supplier Code of Conduct' currently published by the Commonwealth Department of Finance at <https://www.finance.gov.au/government/procurement/commonwealth-supplier-code-conduct/commonwealth-supplier-code-conduct>, as updated and/or relocated from time to time.

- (b) The Supplier must comply with, and ensure that its Representatives and Subcontractors, comply with the Code in connection with the performance of this Agreement.
- (c) The Supplier must immediately notify CSIRO on becoming aware of any breach of clause 15.11(b). The notice must include a summary of the breach, the date that the breach occurred, and details of the personnel involved.
- (d) A failure by the Supplier to comply with its obligations under any part of this clause will be a material breach of this Agreement.
- (e) The Supplier agrees that CSIRO or any other Commonwealth agency may take into account the Supplier's compliance with the Code in any future approach to market or procurement process.

15.12 Criminal Code

- (a) The Supplier acknowledges that the giving of false or misleading information to the Commonwealth is a serious offence under section 137.1 of the schedule to the *Criminal Code Act 1995* (Cth).
- (b) The Supplier will ensure that any Subcontractor engaged in connection with this Agreement is aware of the information contained in this clause.

16. Contract management

16.1 Communications

The CSIRO Contract Administrator and the Supplier Contract Manager (or their nominees) will represent the parties for the day to day purposes of this Agreement.

16.2 Notification

If, in the provision of the Goods or performance of the Services, the Supplier becomes aware of something that may affect the capacity of CSIRO to perform its statutory functions, the Supplier must notify CSIRO in writing as soon as possible.

17. Insurance

17.1 General

The Supplier must:

- (a) effect and maintain the insurances specified in the Insurance Requirements for the period specified in the Insurance Requirements;
- (b) not reduce any insurance policy required by this Agreement without the written consent of CSIRO; and
- (c) give evidence to CSIRO of the insurances, and their currency, in the form of certificates of currency compliant with this Agreement, on each occasion that such insurances are renewed, and at other times on CSIRO's request.

18. Indemnity and liability

18.1 Indemnity

- (a) The Supplier indemnifies CSIRO and its Representatives for all Losses in relation to:
 - i. the Supplier's and its Representatives' negligent, unlawful or wilful acts or omissions; and
 - ii. any breach or default of the Supplier's or its Representatives' obligations or warranties under this Agreement.
- (b) The indemnity in clause 18.1(a) will not in any way reduce or restrict CSIRO's rights at common law in respect of the events that are the subject of the indemnity.

18.2 Contribution

- (a) Each party's liability to the other party for any Loss arising out of this Agreement is reduced to the extent that the other party contributed to the Loss.
- (b) To the extent permitted at Law, the operation of Chapter 7A of the *Civil Law (Wrongs) Act 2002* (ACT) and any equivalent legislation applying in another jurisdiction applicable to a Claim made against a party in relation to this Agreement, is expressly excluded in determining the rights, obligations and liabilities of the parties in any Claim arising under this Agreement, including the rights, obligations and liabilities of the parties arising under any indemnity in this Agreement.

18.3 Indirect or Consequential Loss

Notwithstanding any other clause of this Agreement, neither party will be liable to the other for any Indirect or Consequential Loss.

19. Termination

19.1 Termination for convenience

- (a) CSIRO may terminate this Agreement at any time by giving reasonable written notice.
- (b) If this Agreement is terminated under clause 19.1(a), CSIRO is liable only for:
 - i. payments under clause 7 for Goods and/or Services provided in accordance with this Agreement before the effective date of termination; and
 - ii. reasonable costs actually incurred by the Supplier and directly attributable to the termination that the Supplier can substantiate to CSIRO's reasonable satisfaction.
- (c) CSIRO is not liable to pay compensation under clause 19.1(b)ii for:
 - i. an amount that would, in addition to any amounts paid or due, or becoming due, to the Supplier under this Agreement, exceed the Total Contract Price; or
 - ii. any Indirect or Consequential Loss that is or may be suffered or incurred by the Supplier.

19.2 Termination for Force Majeure Event

- (a) A party may terminate this Agreement effective immediately by giving notice to the other party if the other party has been unable to perform its obligations under this Agreement for more than three months because of a Force Majeure Event.
- (b) On termination of this Agreement under clause 19.2(a), CSIRO will only be liable to pay for Goods and/or Services provided in accordance with this Agreement before the effective termination date and neither party will be entitled to Claim any compensation or damages from the other in relation to the termination.

19.3 Termination by CSIRO for default

- (a) To the extent permitted by Law, CSIRO may terminate this Agreement effective immediately by giving written notice to the Supplier if:
 - i. the Supplier breaches a material provision of this Agreement and that breach is not capable of remedy;
 - ii. the Supplier breaches any provision of this Agreement and fails to remedy the breach within 20 Business Days after receiving notice requiring it to do so;
 - iii. the Supplier becomes Insolvent;
 - iv. the Supplier undergoes a Change in Control and, in the reasonable view of CSIRO, this Change in Control would result in the Supplier being Controlled by or under common Control with an Inappropriate Person, and/or being unable to materially perform its obligations under this Agreement; or
 - v. the Supplier, by any act or omission, places CSIRO's information, assets or its reputation at risk; or
 - vi. this Agreement otherwise entitles CSIRO to do so.

- (b) If CSIRO issues a notice of termination under clause 19.3(a) and it is determined that the purported termination is wrongful, it will be deemed to be a notice of termination under clause 19.1(a).

19.4 Termination by the Supplier for default

The Supplier may terminate this Agreement by giving at least 10 Business Days' written notice to CSIRO if:

- (a) CSIRO has not, within 60 Business Days of receipt of a correctly rendered invoice, either:
 - i. paid the invoice; or
 - ii. notified the Supplier in writing that it disputes any amounts specified in the invoice; and
- (b) the Supplier has given CSIRO:
 - i. a first notice 20 Business Days after the due date of the invoice, specifying the failure to pay and giving CSIRO at least 20 Business Days to pay the invoice; and
 - ii. a second notice 10 Business Days after the first notice, referring to the first notice and advising CSIRO that it has 10 Business Days (or such longer period as is specified in the first notice) to pay the invoice.

19.5 Consequences of termination

If CSIRO issues a notice under clause 19.1(a), 19.2(a) or 19.3(a), the Supplier must:

- (a) stop the supply of the Goods and Services in accordance with the notice;
- (b) deal with CSIRO Material as reasonably directed by CSIRO;
- (c) subject to clause 19.1(b)ii repay on demand any advance payments made by CSIRO for Goods or Services not provided by the effective termination date;
- (d) within 10 Business Days, return all CSIRO Confidential Information to CSIRO;
- (e) comply with any reasonable directions given to the Supplier by CSIRO relating to the termination; and
- (f) mitigate all Loss (including the costs of its compliance with any directions) in relation to the termination, including those arising from affected Subcontracts.

19.6 Termination does not affect accrued rights

Termination of this Agreement does not affect any accrued rights or remedies of a party under this Agreement or at Law.

20. Disengagement and transition out

- (a) If required by CSIRO, the Supplier must take all actions that are reasonably necessary to ensure that there is an efficient and effective transmission of the Services to CSIRO or its nominee when this Agreement ends, so as to cause minimum disruption to the Services and minimum inconvenience to CSIRO. Without prejudice to the generality of that obligation, the Supplier must:
 - i. cooperate with, and provide all reasonable assistance and make available all required information to, CSIRO in support of the transition out of the Supplier and the transition to CSIRO or any new contractor of the provision of the Services;
 - ii. make Representatives available for discussions with CSIRO; and
 - iii. transfer to CSIRO or its nominee all CSIRO Material and Contract Material (and, if it is data or information, provide it in a non-proprietary format that is readily usable by CSIRO or its nominee together with sufficient information to allow reading, searching, interpretation and processing of the CSIRO Material and Contract Material by CSIRO or its nominee).
- (b) The Supplier must provide to CSIRO such evidence as CSIRO reasonably requires to verify the Supplier's performance of its obligations under this clause 20.

21. Dispute resolution

21.1 Agreed procedure

Subject to clause 21.6, if there is a dispute in relation to this Agreement, the parties must comply with this clause 21 to seek to resolve the dispute before initiating legal proceedings. If a party does not comply with this clause 21 in relation to a dispute, the other party does not have to comply with this clause in relation to the dispute.

21.2 Notice

If a party believes a dispute has arisen in relation to this Agreement, that party must give written notice to the other party, adequately identifying and providing details of the dispute.

21.3 Escalation

On receipt of a dispute notice under clause 21.2, the parties must use their best efforts to resolve the dispute without delay, including by escalating the dispute to authorised representatives of the parties who have authority to resolve the dispute.

21.4 Mediation

- (a) If the parties are unable to resolve a dispute in accordance with clause 21.3 within 20 Business Days after receipt of a dispute notice under clause 21.2, the parties must attempt to resolve the dispute through confidential mediation of the dispute to be administered on a without prejudice basis by a mediator appointed by the Australian Disputes Centre (**ADC**), or by such other mediator as is agreed by the Parties. Such mediation must be conducted in accordance with the ADC's mediation rules (or such other rules as the parties agree) and take place at a mutually agreed location.
- (b) If the parties are unable to resolve the dispute by confidential mediation, either party may commence legal proceedings at the conclusion of the mediation.

21.5 Confidentiality and costs

- (a) Any information or documents disclosed by a party under this clause 21 must be kept confidential and may only be used to attempt to resolve the dispute.
- (b) Each party must pay its own costs of complying with this clause 21.

21.6 Exclusions

This dispute resolution procedure does not:

- (a) prevent a party from applying to a court for urgent interlocutory or declaratory relief, or any relief to protect IPR or Confidential Information; or
- (b) apply to any dispute in relation to a set-off under clause 7.6 or termination by CSIRO under clause 19.3.

21.7 Continuation of performance

Despite the existence of a dispute, the Supplier must, unless directed by CSIRO in writing not to do so, continue to provide the Goods and/or Services.

22. Notices and other communications

- (a) Subject to clause 22(b), a notice or other communication in relation to this Agreement must be in writing, marked for the attention of the Supplier Contract Manager or the CSIRO Contract Administrator (as appropriate) and delivered by hand delivery, express post or courier for Australian domestic mail, air mail for international post, or email, to the address specified in the Agreement Details as appropriate (as updated from time to time by notice from the recipient to the sender).
- (b) Any notice of a Claim against CSIRO must be marked to the attention of the Chief Legal Officer, CSIRO.
- (c) A notice or communication provided in accordance with this clause 22 takes effect when it is received (or at a later time specified in the communication) and is taken to be received:

- i. if hand delivered, on delivery;
- ii. if posted by express post or courier in Australia, on the first Business Day after posting;
- iii. if posted to or from a place outside Australia, on the tenth Business Day after posting; or
- iv. if emailed, at the time that would be the time of receipt under the *Electronic Transactions Act 1999* (Cth).

23. Miscellaneous

23.1 Applicable Law

This Agreement (other than clause 23.9(b)) is governed by and is to be construed in accordance with the Laws applicable in the Australian Capital Territory and each party irrevocably and unconditionally submits to the non-exclusive jurisdiction of the courts of the Australian Capital Territory and any courts of appeal from those courts.

23.2 Entire agreement

This Agreement represents the entire agreement of the parties and supersedes all prior representations, communications, contracts, statements and understandings, whether oral or in writing, by the parties, or their Representatives, relating to its subject matter.

23.3 Relationship

- (a) A party is not, and must not represent itself as, an employee, agent, partner or joint venturer of the other party. The relationship between CSIRO and the Supplier is and will remain for the term of this Agreement one of principal and independent contractor.
- (b) The Supplier's Representatives involved in the performance of this Agreement are not, and the Supplier must ensure they do not represent themselves as being, legal representatives, agents, officers, partners, servants or employees of CSIRO.
- (c) Nothing in this Agreement prevents CSIRO from obtaining goods and/or services that are the same as or similar to the Goods and/or Services from any other supplier.

23.4 Assignment or novation of rights

The Supplier may not assign or novate any of its rights under this Agreement without the prior written consent of CSIRO, which will not be unreasonably withheld.

23.5 Varying this Agreement

This Agreement may only be varied in writing signed by the authorised representatives of both parties.

23.6 Waiver

A provision of, or a right created under, this Agreement may not be waived except in writing signed by the party or parties to be bound.

23.7 Further steps

Each party must promptly do whatever any other party reasonably requires of it to give effect to this Agreement and to perform its obligations under it, including to sign, execute or otherwise deal with any document.

23.8 Costs

Each party will bear its own costs of entering into this Agreement.

23.9 Counterparts and electronic execution

- (a) This Agreement may consist of a number of counterparts and the counterparts taken together constitute one and the same instrument.
- (b) This Agreement may be executed electronically in any manner that is legally effective in the place of execution.

23.10 Survival

- (a) Clauses 2.3 (Inspection and Acceptance of Goods, Services and Deliverables), 5 (Supplier warranties), 7.6 (Set-off), 10 (Intellectual Property Rights), 12 (Confidential Information), 13 (Security), 15.2 (Privacy), 15.3 (Data retention), 15.4 (access to premises and records), 17 (Insurance), 18 (Indemnity and liability), 19 (Termination), 20 (Disengagement and transition out), 21 (Dispute resolution) and 23 (Miscellaneous) survive the termination or expiry of this Agreement, as do any other provisions that by implication from their nature are intended to survive termination or expiry of this Agreement.
- (b) Termination or expiry of this Agreement does not affect any accrued rights or remedies of a party.

23.11 Change in Control of the Supplier

The Supplier must notify CSIRO within 5 Business Days if it undergoes, or it becomes aware that it is going to undergo, a Change in Control.

24. Definitions and interpretation

24.1 Definitions

In this Agreement, unless the contrary intention appears:

Accepted means accepted by CSIRO in accordance with clause 2.3(d), and **Accept** and **Acceptance** have a corresponding meaning.

Agency means a 'Commonwealth entity', as defined in the *Public Governance, Performance and Accountability Act 2013* (Cth).

Agreement means this document and includes the Schedules and any attachments or annexures to it.

Background IP means IPR of the Supplier that are:

- (a) in existence at the Commencement Date or are subsequently brought into existence other than as a result of the performance of this Agreement; and
- (b) embodied in, or attach to, the Goods or Services or other Deliverables, or are otherwise necessarily related to the functioning or operation of the Goods or Services or other Deliverables,

and includes the IPR specified in Item **Error! Reference source not found.**, or that subsist in respect of the materials specified in Item **Error! Reference source not found.**. Background IP does not include Third Party IP or CSIRO IP.

Business Day means a day that is not a Saturday, Sunday or bank or public holiday in the place where the Services are to be performed or an action is to be performed and, in all other cases, where the CSIRO Contract Administrator is located.

Change in Control means any change in the Supplier's ownership or corporate structure that results in a change in Control of the Supplier.

Charges means the amounts payable for any Goods set out in, or calculated in accordance with Schedule 2.

Claim means any cause of action, allegation, claim, demand, debt, liability, suit or proceeding of any nature however arising in relation to this Agreement or its subject matter, whether arising under contract (including under any warranty or indemnity or any other breach, actual or anticipatory) and whether present or future, fixed or unascertained, actual or contingent or at law (including negligence or any other tort), in equity, in restitution, strict liability, under statute or otherwise.

Commencement Date means the date specified in Item 5.

Confidential Information means all information disclosed in any form or medium that:

- (a) is designated by a party as confidential;
- (b) is by its nature confidential; or
- (c) the other party knows or ought to know is confidential,

but does not include information that is or becomes public knowledge otherwise than by a breach of this Agreement or any other confidentiality obligation.

Contract Material means any material (including Deliverables) and information created by or on behalf of the Supplier for the purpose of performing its obligations under this Agreement. Examples may include physical items, software, databases, and reports.

Control has the meaning given by section 50AA of the *Corporations Act 2001* (Cth).

CSIRO means the Commonwealth Scientific and Industrial Research Organisation ABN 41 687 119 230.

CSIRO Contract Administrator means the person specified in Item 2, or any substitute notified in writing to the Supplier from time to time.

CSIRO IP means the IPR that is embodied in CSIRO Material.

CSIRO Material means all material and information provided or made available by CSIRO to the Supplier for the purpose of enabling the Supplier to perform its obligations under this Agreement, including the material listed Schedule 1.

Deliverable means a thing, other than Intellectual Property, that the Supplier must supply as a part of the Goods or Services to be supplied, as specified in Schedule 1.

End Date means the date specified in Item 6 or, if this Agreement is extended under clause 1.2, the date on which the relevant option period expires.

Expenses means any expenses approved in accordance with Schedule 2.

Fees means the amounts payable for any Services set out in, or calculated in accordance with Schedule 2.

Force Majeure Event means an event that is beyond the affected party's reasonable control, including war, terrorism, natural disaster, declared pandemic or labour dispute not solely involving that party's Representatives, but not including:

- (a) lack of funds for any reason; or
- (b) any strike, lockout and / or labour disputes involving only the affected party or its Representatives.

Goods means the goods provided, or required to be provided, by the Supplier, as set out or described in this Agreement, including in Schedule 1.

GST has the meaning given to that term in the GST Law.

GST Law has the meaning given to that term in the *A New Tax System (Goods and Services Tax) Act 1999* (Cth).

Harmful Code means any form of harmful or surreptitious code or other contaminants, including commands, instructions, devices, techniques, bugs, web bugs, software locks, software keys, automatics, random expiry dates, virus, trojan horses, spyware or adware.

Illegal Worker means a person who:

- (a) has unlawfully entered and remains in Australia;
- (b) has lawfully entered Australia but remains in Australia after the person's visa has expired; or
- (c) is working in breach of the person's visa conditions.

Indirect or Consequential Loss means:

- (a) loss of business revenue or profit;
- (b) loss of reputation or good will;
- (c) loss of customers, business or any contract;
- (d) loss of opportunity;
- (e) loss of productivity;

- (f) loss arising from exchange rate fluctuation; and
- (g) special, exemplary, contingent, incidental or punitive damages; and

includes any costs or expenses in relation to the types of Loss described in paragraphs (a) to (g) above, but does not include the following types of Loss that may be suffered or incurred by CSIRO:

- (a) time expended due to a breach of this Agreement by the Supplier;
- (b) costs of re-tendering for the subject matter of this Agreement;
- (c) costs of obtaining alternate goods and/or services to the extent that such cost exceeds the amount that would have been payable to the Supplier under this Agreement; and
- (d) costs of implementing remedial measures to work-around or compensate for any breach of this Agreement by the Supplier.

Information Security Manual means the *Australian Government Information Security Manual* that governs the security of government information and communications technology systems, as amended or replaced from time to time.

Inappropriate Person is defined in clause 15.9.

Insolvent includes:

- (a) ceasing to carry on business;
- (b) being an insolvent under administration;
- (c) being insolvent;
- (d) being in liquidation, administration or receivership;
- (e) having a controller, receiver, liquidator or administrator appointed as defined under the *Corporations Act 2001* (Cth),
- (f) being declared bankrupt;
- (g) assigning an estate for the benefit of creditors;
- (h) being dissolved or wound up; or
- (i) having something with the same or similar effect as described in paragraphs (a) to (h) above happen under the laws of any jurisdiction.

Insurance Requirements means the requirements specified in Item 9.

Intellectual Property Rights or **IPR** means:

- (a) all rights in copyright, trade marks (including service marks), trade and service names, designs, circuit layouts, patents, inventions, discoveries, know-how and other protectable rights that may arise in respect of any scientific or technical information; and
- (b) all other proprietary rights or forms of protection of intangible property of a similar nature or having similar or equivalent effect to any of them, whether under international convention or otherwise,

that may subsist anywhere in the world, whether current or future, or registered (including applications, or the right to apply, for registration of any of the above) or unregistered.

Item means an item listed in one of the Schedules.

Law means any applicable statute, regulation, by-law, ordinance or subordinate legislation in force from time to time:

- (a) in Australia, whether made by a State, Territory, the Commonwealth, or a local government, and includes the common law and rules of equity, as applicable from time to time; and
- (b) if any part of this Agreement is to be performed outside Australia, in that place.

Loss means all loss, damage, liability, cost or expense and includes any legal costs on a full indemnity basis and any loss, damage, liability, cost or expense suffered or incurred or agreed to be paid by way of settlement or compromise.

Milestone Date means a timeframe by which the Goods and/or Services must be delivered or provided by the Supplier as may be specified in Schedule 1.

Option Notice means a notice given by CSIRO to the Supplier in accordance with clause 1.2 of Schedule 4 to the effect that CSIRO wishes to extend the term of the Agreement for the relevant Option Period.

Option Period means an option period specified in Item 7.

Personal Information has the meaning given to that term in the Privacy Act.

Privacy Act means the *Privacy Act 1988* (Cth).

Relevant Law means Law of any place where any part of the Goods may be produced, transported or delivered, and/or Services may be carried out.

Removal Date means the date on which the Supplier removes Goods or Deliverables from CSIRO's premises under clause 2.3(d), or the expiry of the maximum period specified in that clause for such removal, whichever occurs first.

Representative of a party means an employee, agent, officer, director, auditor, adviser, partner, consultant, joint venturer or Subcontractor of that party.

Services means the services specified in Schedule 1, including the supply of all Deliverables, and such other services as are reasonably incidental to those services.

Subcontractor means any person or entity subcontracted by the Supplier in the performance of this Agreement, whether directly or via one or more further subcontract arrangements, and **Subcontract** has the corresponding meaning.

Supplier means the person or entity specified in Item 3 and, when the context permits, includes their or its Representatives.

Supplier Contract Manager means the person specified in Item 4, or any substitute notified in writing to CSIRO from time to time.

Tax includes:

- (a) any tax, withholding tax, charge, rate, duty (including stamp duty and customs duty), impost, excise, tax by whatever name called and whether Australian, foreign, State/Territory, municipal, provincial, county or local (not including GST unless the context requires otherwise); and
- (b) any interest, charge, penalty, fee, fine or other amount of any kind assessed, charged or imposed on or in respect of the above.

Tax Invoice has the meaning given to that term in the GST Law.

Third Party IP means IPR owned or controlled by a party other than CSIRO, the Supplier or the Supplier's Representatives, that are:

- (a) specified in Item **Error! Reference source not found.**, or that subsist in respect of the materials specified in Item **Error! Reference source not found.**; and
- (b) embodied in, or attach to, the Goods and/or Services or are otherwise necessarily related to the functioning or operation of the Goods and/or Services.

Total Contract Price means the amount specified in Item 8.

WGE Act means the *Workplace Gender Equality Act 2012* (Cth).

WHS Act means the *Work Health and Safety Act 2011* (Cth) and any corresponding WHS Law within the meaning of section 4 of the WHS Act.

WHS Laws means the WHS Act and WHS Regulations.

WHS Regulations means the regulations made under the WHS Act.

24.2 Interpretation

In this Agreement, unless the contrary intention appears:

- (a) if any word or phrase is given a defined meaning, any other part of speech or other grammatical form of that word or phrase has a corresponding meaning;
- (b) "including" means including without limitation;
- (c) if a period of time is specified and dates from a given day or the day of an act or event, it is to be calculated exclusive of that day;
- (d) a unit of measurement is taken to be expressed in Australian legal units of measurement;
- (e) no rule of construction will apply to the interpretation of a clause to the disadvantage of a party merely because that party put forward the clause or would otherwise benefit from it;
- (f) a reference to a person includes a partnership, joint venture, unincorporated association, corporation and a government or statutory body or authority and (as the case may be) the person's legal personal representatives, successors, assigns and persons substituted by novation;
- (g) a reference to time is to local time in the place where the Services are to be performed or an act (including service of a notice) is to be performed and, in all other cases, where the CSIRO Contract Administrator is located;
- (h) a reference to "\$" or "dollars" is a reference to Australian currency; and
- (i) this or any other document includes the document as novated, varied or replaced and despite any change in the identity of the parties.

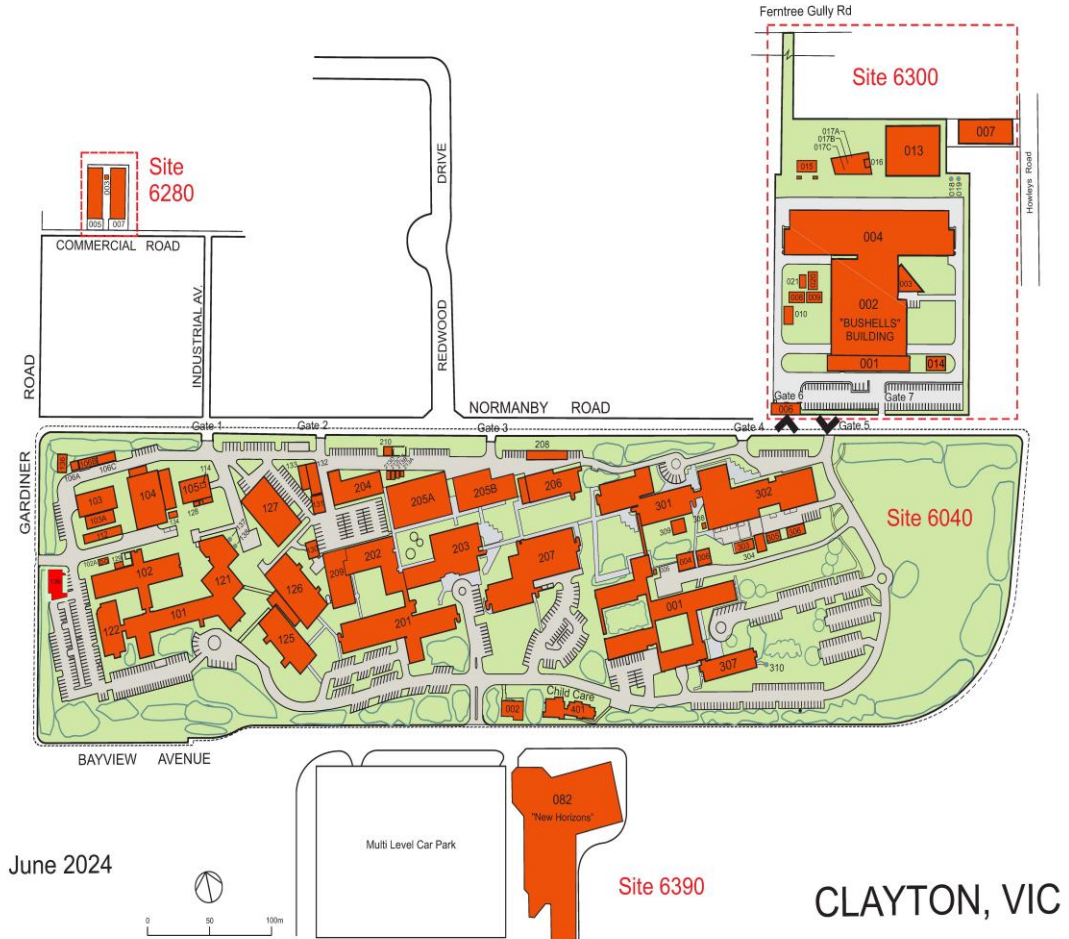
24.3 Inconsistent terms

If there is any inconsistency between the provisions of this Agreement, the provision in the higher ranked document listed below will prevail to the extent of the inconsistency:

- (a) the Special Conditions in Schedule 3 (if any);
- (b) these terms and conditions (and, as between them, in the order in which they appear);
- (c) the Schedules, except for Schedule 3 (and, as between them, in the order in which they appear);
- (d) any Attachments or Annexes (and, as between them, in the order in which they appear); and
- (e) any document incorporated by reference.

Schedule 5. Site Plans

1. Clayton Precinct



2. Aspendale

6020



February 2024

ASPENDALE

3. Werribee Sneydes Road

February 2024

6320

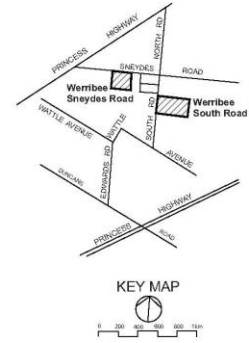


WERRIBEE - SNEYDES ROAD

4. Werribee South Road

March 2024

6310



WERRIBEE - SOUTH ROAD